

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES				1. REQUISITION NO. 116-23-1-4298-0001		PAGE 1 OF 59	
OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30							
2. CONTRACT NO. NNG15SD22B		3. AWARD/EFFECTIVE DATE 10-01-2022		4. ORDER NO. 36C10B23F0015		5. SOLICITATION NUMBER	
7. FOR SOLICITATION INFORMATION CALL:		a. NAME Elena Juliano				b. TELEPHONE NO. (No Collect Calls) 848-377-5246	
9. ISSUED BY Department of Veterans Affairs Technology Acquisition Center 23 Christopher Way Eatontown NJ 07724		CODE		10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR: ☐ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☒ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM ☐ EDWOSB ☐ 8(A)		NAICS: 541519 SIZE STANDARD: 150 Empl	
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700) ☐		13b. RATING N/A	
						14. METHOD OF SOLICITATION ☐ RFQ ☐ IFB ☐ RFP	
15. DELIVER TO See Delivery Schedule		CODE		16. ADMINISTERED BY Department of Veterans Affairs Technology Acquisition Center 23 Christopher Way Eatontown NJ 07724		CODE	
17a. CONTRACTOR/OFFEROR FOUR POINTS TECHNOLOGY, L.L.C. 14900 CONFERENCE CENTER DR STE 100 CHANTILLY VA 20151		CODE 1YS78 FACILITY CODE		18a. PAYMENT WILL BE MADE BY Department of Veterans Affairs Technology Acquisition Center Financial Services Center PO Box 149971 Austin TX 78714-8971 PHONE: FAX:		CODE	
TELEPHONE NO. UEH1KHJPJH9R51 EFT:				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER							
19. ITEM NO.		20. See CONTINUATION Page SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY		22. UNIT	
				23. UNIT PRICE		24. AMOUNT	
		Cisco AppDynamics Enterprise License Agreement October 1, 2022 through September 30, 2023 Points of Contact CO: Joshua Cohen, Joshua.Cohen2@va.gov CS: Elena Juliano, Elena.Juliano@va.gov PM: Frank Joy Jr, Frank.Joy@va.gov (Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA 116-3630167-4298-197100-2324 T4GCZADZ5 Bill To PO: 116-S35033		See CONTINUATION Page		26. TOTAL AWARD AMOUNT (For Govt. Use Only) \$2,019,132.03			
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA				☐ ARE ☐ ARE NOT ATTACHED.			
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA				☐ ARE ☐ ARE NOT ATTACHED			
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN _____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED				☐ 29. AWARD OF CONTRACT: REF. _____ OFFER DATED _____ YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN IS ACCEPTED AS TO ITEMS:			
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT) Joshua Cohen		31c. DATE SIGNED	

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SECTION B - CONTINUATION OF SF 1449 BLOCKS**B.1 CONTRACT ADMINISTRATION DATA**

1. Contract Administration: All contract administration matters will be handled by the following individuals:

a. CONTRACTOR: Four Points Technology, LLC
14900 Conference Center Dr, Ste 100
Chantilly, VA 20151
ATTN: Sarah Juszczak, sjuszczak@4points.com

b. GOVERNMENT: Contracting Officer 36C10B
Department of Veterans Affairs
Technology Acquisition Center
23 Christopher Way
Eatontown NJ 07724

2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with:

☒ 52.232-33, Payment by Electronic Funds Transfer—System For Award Management, or

3. INVOICES: Invoices shall be submitted in arrears:

a. Quarterly ☐

b. Semi-Annually ☐

c. Other [In accordance with Section B.4, Price Schedule]

4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests.

5. ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

AMENDMENT NO	DATE
1	09/23/2022

B.2 GOVERNING LAW

Federal law and regulations, including the Federal Acquisition Regulations (FAR), shall govern this Contract/Order. Commercial license agreements may be made a part of this Contract/Order but only if both parties expressly make them an addendum hereto, as permitted by FAR 12.212. If the commercial license agreement is not made an addendum, it shall not apply, govern, be a part of or have any effect whatsoever on the Contract/Order; this includes, but is not limited to, any agreement embedded in the computer software (clickwrap), any agreement that is otherwise delivered with or provided to the Government with the commercial computer software or documentation (shrinkwrap), or any other license agreement otherwise referred to in any document. If a commercial license agreement is made an addendum, only those provisions addressing data rights regarding the Government's use, duplication and disclosure of data (e.g., restricted computer software) are included and made a part of this Contract/Order, and only to the extent that those provisions are not duplicative or inconsistent with Federal law, Federal regulation, the incorporated FAR clauses and the provisions of this Contract/Order; those provisions in the commercial license agreement that do not address data rights regarding the Government's use, duplication and disclosure of data shall not be included or made a part of the Contract/Order. Federal law and regulation including, without limitation, the Contract Disputes Act (41 U.S.C. § 7101 et seq.), the Anti-Deficiency Act (31 U.S.C. § 1341 et seq.), the Competition in Contracting Act (41 U.S.C. § 3301 et seq.), the Prompt Payment Act (31 U.S.C. § 3901 et seq.), Contracts for Data Processing or Maintenance (38 USC § 5725), and FAR clauses 52.212-4, 52.227-14, 52.227-19 shall supersede, control, and render ineffective any inconsistent, conflicting, or duplicative provision in any commercial license agreement. In the event of conflict between this clause and any provision in the Contract/Order or the commercial license agreement or elsewhere, the terms of this clause shall prevail. The Contractor shall deliver to the Government all data first produced under this Contract/Order with unlimited rights as defined by FAR 52.227-14. Claims of patent or copyright infringement brought against the Government as a party shall be defended by the U.S. Department of Justice (DOJ) in accordance with 28 U.S.C. § 516; at the discretion of DOJ, the Contractor may be allowed reasonable participation in the defense of the litigation. Any additional changes to the Contract/Order must be made by modification (Standard Form 30) and shall only be made by a warranted Contracting Officer. Nothing in this Contract/Order or any commercial license agreement shall be construed as a waiver of sovereign immunity.

B.3 SOFTWARE LICENSE, MAINTENANCE AND TECHNICAL SUPPORT

(1) Definitions.

- (a) Licensee. The term “licensee” shall mean the U.S. Department of Veterans Affairs (“VA”) and is synonymous with “Government.”
- (b) Licensor. The term “licensor” shall mean the contractor having the necessary license or ownership rights to deliver license, software maintenance and support of the computer software being acquired. The term “contractor” is the party identified in Block 17a on the SF1449. If the contractor is a reseller and not the Licensor, the contractor remains responsible for performance under this order.
- (c) Software. The term “software” shall mean the licensed computer software product(s) cited in the Schedule of Supplies/Services.
- (d) Maintenance. The term “maintenance” is the process of enhancing and optimizing software, as well as remedying defects. It shall include all new fixes, patches, releases, updates, versions and upgrades, as further defined below.
- (e) Technical Support. The term “technical support” refers to the range of services providing assistance for the software via the telephone, email, a website or otherwise.
- (f) Release or Update. The term “release” or “update” are terms that refer to a revision of software that contains defect corrections, minor enhancements or improvements of the software’s functionality. This is usually designated by a change in the number to the right of the decimal point (e.g., from Version 5.3 to 5.4). An example of an update is the addition of new hardware.
- (g) Version or Upgrade. The term “version” or “upgrade” are terms that refer to a revision of software that contains new or improved functionality. This is usually designated by a change in the number to the left of the decimal point (e.g., from Version 5.4 to 6).

(2) Software License

- (a) Unless otherwise stated in the Schedule of Supplies/Services, the Performance Work Statement or Product Description, the software license provided to the Government is a perpetual, nonexclusive license to use the software
- (b) The Government may use the software in a networked environment.
- (c) Any dispute regarding the license grant or usage limitations shall be resolved in accordance with the Disputes Clause incorporated in FAR 52.212-4(d).
- (d) All limitations of software usage are expressly stated in the Schedule of Supplies/Services and the Performance Work Statement/Product Description.

(3) Software Maintenance and Technical Support

- (a) If the Government desires to continue software maintenance and support beyond the period of performance identified in this contract or order, the Government will issue a separate contract or order for maintenance and support. Conversely, if a contract or order for continuing software maintenance and technical support is not received the contractor is

neither authorized nor permitted to renew any of the previously furnished services.

- (b) The contractor shall provide software support services, which includes periodic updates, enhancements and corrections to the software, and reasonable technical support, all of which are customarily provided by the contractor to its commercial customers so as to cause the software to perform according to its specifications, documentation or demonstrated claims.
 - (c) Any telephone support provided by contractor shall be at no additional cost.
 - (d) The contractor shall provide all maintenance services in a timely manner in accordance with the contractor's customary practice or as defined in the Performance Work Statement/Product Description. However, prolonged delay (exceeding 2 business days) in resolving software problems will be noted in the Government's various past performance records on the contractor (e.g., www.ppirs.gov).
 - (e) If the Government allows the maintenance and support to lapse and subsequently wishes to reinstate it, any reinstatement fee charged shall not exceed the amounts that would have been charged if the Government had not allowed the subscription to lapse.
- (4) Disabling Software Code. The Government requires delivery of computer software that does not contain any code that will, upon the occurrence or the nonoccurrence of any event, disable the software. Such code includes but is not limited to a computer virus, restrictive key, node lock, time-out or other function, whether implemented by electronic, mechanical, or other means, which limits or hinders the use or access to any computer software based on residency on a specific hardware configuration, frequency of duration of use, or other limiting criteria. If any such disabling code is present, the contractor agrees to indemnify the Government for all damages suffered as a result of a disabling caused by such code, and the contractor agrees to remove such code upon the Government's request at no extra cost to the Government. Inability of the contractor to remove the disabling software code will be considered an inexcusable delay and a material breach of contract, and the Government may exercise its right to terminate for cause. In addition, the Government is permitted to remove the code as it deems appropriate and charge the Contractor for consideration for the time and effort expended in removing the code.
- (5) Manuals and Publications. Upon Government request, the contractor shall furnish the most current version of the user manual and publications for all products/services provided under this contract or order at no cost.

B.4 SECTION B – SCHEDULE OF DELIVERABLES

BASE PERIOD (10/01/2022 – 09/30/2023)					
Contract Line Item Number (CLIN)	Description	QTY	UNIT	UNIT PRICE	TOTAL PRICE
0001	Production Cisco AppDynamics APM ANY LANGUAGE ON-PREM License Part #: PRO-APM-ONPR	328	EA	\$521.10	\$170,920.80
0002	Production Cisco AppDynamics APM ANY LANGUAGE MICROSERVICES (5- PACK) Part #: PRO-MCR-APM- ONPR	340	EA	\$509.89	\$173,362.60
0003	Production Cisco AppDynamics ADVANCED ANY LANGUAGE MICROSERVICES (5- PACK) Part #: ADV-MCR-APM- ONPR	40	EA	\$714.13	\$28,565.20
0004	Production Cisco AppDynamics BROWSER REAL USER MONITORING ON-PREM Part #: PRO-BRUM-ONPR	259	EA	\$509.89	\$132,061.51
0005	Production Cisco AppDynamics BROWSER SYNTHETIC MONITORING PRIVATE AGENT UNLIMITED LOCATIONS Part #: PRO-SYNPA-UL- ONPR	1000	EA	\$82.95	\$82,950.00
0006	Production Cisco AppDynamics - DATABASE VISIBILITY - ON-PREM License Part #: PRO-DB-ONPR	533	EA	\$509.89	\$271,771.37
0007	Production Cisco AppDynamics - LOG ANALYTICS - ON-PREM Part #: PRO-LA-ONPR	127	NA	\$509.89	\$64,756.03
0008	Production Cisco AppDynamics SERVER VISIBILITY (3-PACK) ON- PREM	872	EA	\$509.89	\$444,624.08

	Part #: PRO-SIM-ONPR				
0009	Pre-Production Cisco AppDynamics APM ANY LANGUAGE ON-PREM License Part #: TST-APM-ONPR	97	EA	\$260.55	\$25,273.35
0010	Pre-Production Cisco AppDynamics APM ANY LANGUAGE MICROSERVICES (5- PACK) ON-PREM Part #: TST-MCR-APM- ONPR	400	EA	\$254.95	\$101,980.00
0011	Pre-Production Cisco AppDynamics ADVANCED ANY LANGUAGE MICROSERVICES (5- PACK) Part #: TST-ADV-MCR- APM-ONPR	35	EA	\$357.06	\$12,497.10
0012	Pre-Production Cisco AppDynamics BROWSER REAL USER MONITORING ON-PREM Part #: TST-BRUM-ONPR	77	EA	\$254.95	\$19,631.15
0013	Pre-Production Cisco AppDynamics DATABASE VISIBILITY - ON-PREM Part #: TST-DB-ONPR	221	EA	\$254.95	\$56,343.95
0014	Pre-Production Cisco AppDynamics LOG ANALYTICS ON- PREM Part #: TST-LA-ONPR	3	NA	\$254.94	\$764.82
0015	Pre-Production Cisco AppDynamics SERVER VISIBILITY (3-PACK) ON- PREM Part #: TST-SIM-ONPR	476	EA	\$254.95	\$121,356.20
0016	AppDynamics Pro Edition - Mobile Real User Monitoring On-Premise Part #: PRO-MRUM-ONPR	3	EA	\$517.37	\$1,552.11
0017	AppDynamics Pro Edition - Transaction Analytics - On- Premise Part #: PRO-TA-ONPR	36	NA	\$521.10	\$18,759.60
0018	AppDynamics Test & Dev Edition Mobile Real User Monitoring On-Premise Part #: TST-MRUM-ONPR	3	EA	\$258.68	\$776.04
0019	AppDynamics Test & Dev Edition Transaction Analytics On-Premise	3	NA	\$260.55	\$781.65

	Part #: TST-TA-ONPR				
0020	Expert as a Service Subscription X-Large Part #: ENB-SER-EXPSUB-XL	1	EA	\$172,815.59	\$172,815.59
0021	Expert as a Service Subscription Large Part #: ENB-SER-EXPSUB-L	1	EA	\$117,588.88	\$117,588.88
TOTAL BASE					\$2,019,132.03
BASE OPTIONAL QUANTITIES Base Optional Quantities may be exercised any time up to the maximum/not to exceed (NTE) value designated in the CLIN below in accordance with FAR 52.217-7 Option for Increased Quantity-- Separately Priced Line Item.					
0022	During the period of performance, with at least five (5) business days' written notice to the Contactor, and not more than twice during the Base Period and each Option Period, the Government may exercise this optional task for additional quantities of license units of any of the AppDynamics products listed in Table 2 of the Product Description not to exceed the total amount of \$300,000.00 in the Base Period. Unit prices paid for the products listed in Table 2 shall not exceed those listed in Attachment A, "Optional Quantities Pricing Spreadsheet".		Not to Exceed (NTE)		\$300,000.00
TOTAL BASE AND OPTIONAL QUANTITIES					\$2,319,132.03

OPTION YEAR 1 Option Year 1 may be exercised in accordance with FAR 52.217-9, "Option to Extend the Term of the Contract". If exercised the period of performance is 12 months commencing October 1, 2023 through September 30, 2024.					
Contract Line Item Number (CLIN)	Description	QTY	UNIT	UNIT PRICE	TOTAL PRICE
1001	Production Cisco AppDynamics APM ANY LANGUAGE ON-PREM License Part #: PRO-APM-ONPR	328	EA	\$521.10	\$170,920.80
1002	Production Cisco AppDynamics APM ANY LANGUAGE MICROSERVICES (5-PACK) Part #: PRO-MCR-APM-ONPR	340	EA	\$509.89	\$173,362.60
1003	Production Cisco AppDynamics ADVANCED	40	EA	\$714.13	\$28,565.20

	ANY LANGUAGE MICROSERVICES (5- PACK) Part #: ADV-MCR-APM- ONPR				
1004	Production Cisco AppDynamics BROWSER REAL USER MONITORING ON-PREM Part #: PRO-BRUM-ONPR	259	EA	\$509.89	\$132,061.51
1005	Production Cisco AppDynamics BROWSER SYNTHETIC MONITORING PRIVATE AGENT UNLIMITED LOCATIONS Part #: PRO-SYNPA-UL- ONPR	1000	EA	\$82.95	\$82,950.00
1006	Production Cisco AppDynamics - DATABASE VISIBILITY - ON-PREM License Part #: PRO-DB-ONPR	533	EA	\$509.89	\$271,771.37
1007	Production Cisco AppDynamics - LOG ANALYTICS - ON-PREM Part #: PRO-LA-ONPR	127	NA	\$509.89	\$64,756.03
1008	Production Cisco AppDynamics SERVER VISIBILITY (3-PACK) ON- PREM Part #: PRO-SIM-ONPR	872	EA	\$509.89	\$444,624.08
1009	Pre-Production Cisco AppDynamics APM ANY LANGUAGE ON-PREM License Part #: TST-APM-ONPR	97	EA	\$260.55	\$25,273.35
1010	Pre-Production Cisco AppDynamics APM ANY LANGUAGE MICROSERVICES (5- PACK) ON-PREM Part #: TST-MCR-APM- ONPR	400	EA	\$254.95	\$101,980.00
1011	Pre-Production Cisco AppDynamics ADVANCED ANY LANGUAGE MICROSERVICES (5- PACK) Part #: TST-ADV-MCR- APM-ONPR	35	EA	\$357.06	\$12,497.10
1012	Pre-Production Cisco AppDynamics BROWSER	77	EA	\$254.95	\$19,631.15

	REAL USER MONITORING ON-PREM Part #: TST-BRUM-ONPR				
1013	Pre-Production Cisco AppDynamics DATABASE VISIBILITY - ON-PREM Part #: TST-DB-ONPR	221	EA	\$254.95	\$56,343.95
1014	Pre-Production Cisco AppDynamics LOG ANALYTICS ON- PREM Part #: TST-LA-ONPR	3	NA	\$254.94	\$764.82
1015	Pre-Production Cisco AppDynamics SERVER VISIBILITY (3-PACK) ON- PREM Part #: TST-SIM-ONPR	476	EA	\$254.95	\$121,356.20
1016	AppDynamics Pro Edition - Mobile Real User Monitoring On-Premise Part #: PRO-MRUM-ONPR	3	EA	\$517.37	\$1,552.11
1017	AppDynamics Pro Edition - Transaction Analytics - On- Premise Part #: PRO-TA-ONPR	36	NA	\$521.10	\$18,759.60
1018	AppDynamics Test & Dev Edition Mobile Real User Monitoring On-Premise Part #: TST-MRUM-ONPR	3	EA	\$258.68	\$776.04
1019	AppDynamics Test & Dev Edition Transaction Analytics On-Premise Part #: TST-TA-ONPR	3	NA	\$260.55	\$781.65
1020	Expert as a Service Subscription X-Large Part #: ENB-SER-EXPSUB- XL	1	EA	\$172,815.59	\$172,815.59
1021	Expert as a Service Subscription Large Part #: ENB-SER-EXPSUB- L	1	EA	\$117,588.88	\$117,588.88
TOTAL OPTION YEAR 1					\$2,019,132.03
OPTION YEAR 1 OPTIONAL QUANTITIES					
Option Year 1 Quantities may be exercised any time up to the maximum/not to exceed (NTE) value designated in the CLIN below in accordance with FAR 52.217-7 Option for Increased Quantity-- Separately Priced Line Item.					
1022	During the period of performance, with at least five (5) business days' written notice to the Contactor, and not more than twice during the Base Period and each Option Period, the Government may exercise this optional task for additional quantities of license units of any of the AppDynamics products listed in			Not to Exceed (NTE)	\$300,000.00

	Table 2 of the Product Description not to exceed the total amount of \$300,000.00 in Option Year 1. Unit prices paid for the products listed in Table 2 shall not exceed those listed in Attachment A, "Optional Quantities Pricing Spreadsheet".		
TOTAL OPTION YEAR 1 AND OPTIONAL QUANTITIES			\$2,319,132.03

OPTION YEAR 2					
Option Year 2 may be exercised in accordance with FAR 52.217-9, "Option to Extend the Term of the Contract". If exercised the period of performance is 12 months commencing October 1, 2024 through September 30, 2025					
Contract Line Item Number (CLIN)	Description	QTY	UNIT	UNIT PRICE	TOTAL PRICE
2001	Production Cisco AppDynamics APM ANY LANGUAGE ON-PREM License Part #: PRO-APM-ONPR	328	EA	\$521.10	\$170,920.80
2002	Production Cisco AppDynamics APM ANY LANGUAGE MICROSERVICES (5-PACK) Part #: PRO-MCR-APM-ONPR	340	EA	\$509.89	\$173,362.60
2003	Production Cisco AppDynamics ADVANCED ANY LANGUAGE MICROSERVICES (5-PACK) Part #: ADV-MCR-APM-ONPR	40	EA	\$714.13	\$28,565.20
2004	Production Cisco AppDynamics BROWSER REAL USER MONITORING ON-PREM Part #: PRO-BRUM-ONPR	259	EA	\$509.89	\$132,061.51
2005	Production Cisco AppDynamics BROWSER SYNTHETIC MONITORING PRIVATE AGENT UNLIMITED LOCATIONS Part #: PRO-SYNPA-UL-ONPR	1000	EA	\$82.95	\$82,950.00
2006	Production Cisco AppDynamics - DATABASE VISIBILITY - ON-PREM License Part #: PRO-DB-ONPR	533	EA	\$509.89	\$271,771.37

2007	Production Cisco AppDynamics - LOG ANALYTICS - ON-PREM Part #: PRO-LA-ONPR	127	NA	\$509.89	\$64,756.03
2008	Production Cisco AppDynamics SERVER VISIBILITY (3-PACK) ON- PREM Part #: PRO-SIM-ONPR	872	EA	\$509.89	\$444,624.08
2009	Pre-Production Cisco AppDynamics APM ANY LANGUAGE ON-PREM License Part #: TST-APM-ONPR	97	EA	\$260.55	\$25,273.35
2010	Pre-Production Cisco AppDynamics APM ANY LANGUAGE MICROSERVICES (5- PACK) ON-PREM Part #: TST-MCR-APM- ONPR	400	EA	\$254.95	\$101,980.00
2011	Pre-Production Cisco AppDynamics ADVANCED ANY LANGUAGE MICROSERVICES (5- PACK) Part #: TST-ADV-MCR- APM-ONPR	35	EA	\$357.06	\$12,497.10
2012	Pre-Production Cisco AppDynamics BROWSER REAL USER MONITORING ON-PREM Part #: TST-BRUM-ONPR	77	EA	\$254.95	\$19,631.15
2013	Pre-Production Cisco AppDynamics DATABASE VISIBILITY - ON-PREM Part #: TST-DB-ONPR	221	EA	\$254.95	\$56,343.95
2014	Pre-Production Cisco AppDynamics LOG ANALYTICS ON- PREM Part #: TST-LA-ONPR	3	NA	\$254.94	\$764.82
2015	Pre-Production Cisco AppDynamics SERVER VISIBILITY (3-PACK) ON- PREM Part #: TST-SIM-ONPR	476	EA	\$254.95	\$121,356.20
2016	AppDynamics Pro Edition - Mobile Real User Monitoring On-Premise Part #: PRO-MRUM-ONPR	3	EA	\$517.37	\$1,552.11
2017	AppDynamics Pro Edition - Transaction Analytics - On- Premise	36	NA	\$521.10	\$18,759.60

	Part #: PRO-TA-ONPR				
2018	AppDynamics Test & Dev Edition Mobile Real User Monitoring On-Premise Part #: TST-MRUM-ONPR	3	EA	\$258.68	\$776.04
2019	AppDynamics Test & Dev Edition Transaction Analytics On-Premise Part #: TST-TA-ONPR	3	NA	\$260.55	\$781.65
2020	Expert as a Service Subscription X-Large Part #: ENB-SER-EXPSUB- XL	1	EA	\$172,815.59	\$172,815.59
2021	Expert as a Service Subscription Large Part #: ENB-SER-EXPSUB- L	1	EA	\$117,588.88	\$117,588.88
TOTAL OPTION YEAR 2					\$2,019,132.03
OPTION YEAR 2 OPTIONAL QUANTITIES					
Option Year 2 Quantities may be exercised any time up to the maximum/not to exceed (NTE) value designated in the CLIN below in accordance with FAR 52.217-7 Option for Increased Quantity-- Separately Priced Line Item.					
2022	During the period of performance, with at least five (5) business days’ written notice to the Contactor, and not more than twice during the Base Period and each Option Period, the Government may exercise this optional task for additional quantities of license units of any of the AppDynamics products listed in Table 2 of the Product Description not to exceed the total amount of \$300,000.00 in Option Year 2. Unit prices paid for the products listed in Table 2 shall not exceed those listed in Attachment A, “Optional Quantities Pricing Spreadsheet”.			Not to Exceed (NTE)	\$300,000.00
TOTAL OPTION YEAR 2 AND OPTIONAL QUANTITIES					\$2,319,132.03

OPTION YEAR 3 Option Year 3 may be exercised in accordance with FAR 52.217-9, "Option to Extend the Term of the Contract". If exercised the period of performance is 12 months commencing October 1, 2025 through September 30, 2026					
Contract Line Item Number (CLIN)	Description	QTY	UNIT	UNIT PRICE	TOTAL PRICE
3001	Production Cisco AppDynamics APM ANY LANGUAGE ON-PREM License Part #: PRO-APM-ONPR	328	EA	\$521.10	\$170,920.80

3002	Production Cisco AppDynamics APM ANY LANGUAGE MICROSERVICES (5- PACK) Part #: PRO-MCR-APM- ONPR	340	EA	\$509.89	\$173,362.60
3003	Production Cisco AppDynamics ADVANCED ANY LANGUAGE MICROSERVICES (5- PACK) Part #: ADV-MCR-APM- ONPR	40	EA	\$714.13	\$28,565.20
3004	Production Cisco AppDynamics BROWSER REAL USER MONITORING ON-PREM Part #: PRO-BRUM-ONPR	259	EA	\$509.89	\$132,061.51
3005	Production Cisco AppDynamics BROWSER SYNTHETIC MONITORING PRIVATE AGENT UNLIMITED LOCATIONS Part #: PRO-SYNPA-UL- ONPR	1000	EA	\$82.95	\$82,950.00
3006	Production Cisco AppDynamics - DATABASE VISIBILITY - ON-PREM License Part #: PRO-DB-ONPR	533	EA	\$509.89	\$271,771.37
3007	Production Cisco AppDynamics - LOG ANALYTICS - ON-PREM Part #: PRO-LA-ONPR	127	NA	\$509.89	\$64,756.03
3008	Production Cisco AppDynamics SERVER VISIBILITY (3-PACK) ON- PREM Part #: PRO-SIM-ONPR	872	EA	\$509.89	\$444,624.08
3009	Pre-Production Cisco AppDynamics APM ANY LANGUAGE ON-PREM License Part #: TST-APM-ONPR	97	EA	\$260.55	\$25,273.35
3010	Pre-Production Cisco AppDynamics APM ANY LANGUAGE MICROSERVICES (5- PACK) ON-PREM Part #: TST-MCR-APM- ONPR	400	EA	\$254.95	\$101,980.00

3011	Pre-Production Cisco AppDynamics ADVANCED ANY LANGUAGE MICROSERVICES (5-PACK) Part #: TST-ADV-MCR-APM-ONPR	35	EA	\$357.06	\$12,497.10
3012	Pre-Production Cisco AppDynamics BROWSER REAL USER MONITORING ON-PREM Part #: TST-BRUM-ONPR	77	EA	\$254.95	\$19,631.15
3013	Pre-Production Cisco AppDynamics DATABASE VISIBILITY - ON-PREM Part #: TST-DB-ONPR	221	EA	\$254.95	\$56,343.95
3014	Pre-Production Cisco AppDynamics LOG ANALYTICS ON- PREM Part #: TST-LA-ONPR	3	NA	\$254.94	\$764.82
3015	Pre-Production Cisco AppDynamics SERVER VISIBILITY (3-PACK) ON-PREM Part #: TST-SIM-ONPR	476	EA	\$254.95	\$121,356.20
3016	AppDynamics Pro Edition - Mobile Real User Monitoring On-Premise Part #: PRO-MRUM-ONPR	3	EA	\$517.37	\$1,552.11
3017	AppDynamics Pro Edition - Transaction Analytics - On-Premise Part #: PRO-TA-ONPR	36	NA	\$521.10	\$18,759.60
3018	AppDynamics Test & Dev Edition Mobile Real User Monitoring On-Premise Part #: TST-MRUM-ONPR	3	EA	\$258.68	\$776.04
3019	AppDynamics Test & Dev Edition Transaction Analytics On-Premise Part #: TST-TA-ONPR	3	NA	\$260.55	\$781.65
3020	Expert as a Service Subscription X-Large Part #: ENB-SER-EXPSUB-XL	1	EA	\$172,815.59	\$172,815.59
3021	Expert as a Service Subscription Large Part #: ENB-SER-EXPSUB-L	1	EA	\$117,588.88	\$117,588.88
TOTAL OPTION YEAR 3					\$2,019,132.03
OPTION YEAR 3 OPTIONAL QUANTITIES					

Option Year 3 Optional Quantities may be exercised any time up to the maximum/not to exceed (NTE) value designated in the CLIN below in accordance with FAR 52.217-7 Option for Increased Quantity-- Separately Priced Line Item.			
3022	During the period of performance, with at least five (5) business days' written notice to the Contactor, and not more than twice during the Base Period and each Option Period, the Government may exercise this optional task for additional quantities of license units of any of the AppDynamics products listed in Table 2 of the Product Description not to exceed the total amount of \$300,000.00 in Option Year 3. Unit prices paid for the products listed in Table 3 shall not exceed those listed in Attachment A, "Optional Quantities Pricing Spreadsheet".	Not to Exceed (NTE)	\$300,000.00
TOTAL OPTION YEAR 3 AND OPTIONAL QUANTITIES			\$2,319,132.03

OPTION YEAR 4 Option Year 4 may be exercised in accordance with FAR 52.217-9, "Option to Extend the Term of the Contract". If exercised the period of performance is 12 months commencing October 1, 2026 through September 30, 2027					
Contract Line Item Number (CLIN)	Description	QTY	UNIT	UNIT PRICE	TOTAL PRICE
4001	Production Cisco AppDynamics APM ANY LANGUAGE ON-PREM License Part #: PRO-APM-ONPR	328	EA	\$521.10	\$170,920.80
4002	Production Cisco AppDynamics APM ANY LANGUAGE MICROSERVICES (5-PACK) Part #: PRO-MCR-APM-ONPR	340	EA	\$509.89	\$173,362.60
4003	Production Cisco AppDynamics ADVANCED ANY LANGUAGE MICROSERVICES (5-PACK) Part #: ADV-MCR-APM-ONPR	40	EA	\$714.13	\$28,565.20
4004	Production Cisco AppDynamics BROWSER REAL USER MONITORING ON-PREM Part #: PRO-BRUM-ONPR	259	EA	\$509.89	\$132,061.51
4005	Production Cisco AppDynamics BROWSER SYNTHETIC MONITORING	1000	EA	\$82.95	\$82,950.00

	PRIVATE AGENT UNLIMITED LOCATIONS Part #: PRO-SYNPA-UL- ONPR				
4006	Production Cisco AppDynamics - DATABASE VISIBILITY - ON-PREM License Part #: PRO-DB-ONPR	533	EA	\$509.89	\$271,771.37
4007	Production Cisco AppDynamics - LOG ANALYTICS - ON-PREM Part #: PRO-LA-ONPR	127	NA	\$509.89	\$64,756.03
4008	Production Cisco AppDynamics SERVER VISIBILITY (3-PACK) ON- PREM Part #: PRO-SIM-ONPR	872	EA	\$509.89	\$444,624.08
4009	Pre-Production Cisco AppDynamics APM ANY LANGUAGE ON-PREM License Part #: TST-APM-ONPR	97	EA	\$260.55	\$25,273.35
4010	Pre-Production Cisco AppDynamics APM ANY LANGUAGE MICROSERVICES (5- PACK) ON-PREM Part #: TST-MCR-APM- ONPR	400	EA	\$254.95	\$101,980.00
4011	Pre-Production Cisco AppDynamics ADVANCED ANY LANGUAGE MICROSERVICES (5- PACK) Part #: TST-ADV-MCR- APM-ONPR	35	EA	\$357.06	\$12,497.10
4012	Pre-Production Cisco AppDynamics BROWSER REAL USER MONITORING ON-PREM Part #: TST-BRUM-ONPR	77	EA	\$254.95	\$19,631.15
4013	Pre-Production Cisco AppDynamics DATABASE VISIBILITY - ON-PREM Part #: TST-DB-ONPR	221	EA	\$254.95	\$56,343.95
4014	Pre-Production Cisco AppDynamics LOG ANALYTICS ON- PREM Part #: TST-LA-ONPR	3	NA	\$254.94	\$764.82
4015	Pre-Production Cisco AppDynamics SERVER	476	EA	\$254.95	\$121,356.20

	VISIBILITY (3-PACK) ON- PREM Part #: TST-SIM-ONPR				
4016	AppDynamics Pro Edition - Mobile Real User Monitoring On-Premise Part #: PRO-MRUM-ONPR	3	EA	\$517.37	\$1,552.11
4017	AppDynamics Pro Edition - Transaction Analytics - On- Premise Part #: PRO-TA-ONPR	36	NA	\$521.10	\$18,759.60
4018	AppDynamics Test & Dev Edition Mobile Real User Monitoring On-Premise Part #: TST-MRUM-ONPR	3	EA	\$258.68	\$776.04
4019	AppDynamics Test & Dev Edition Transaction Analytics On-Premise Part #: TST-TA-ONPR	3	NA	\$260.55	\$781.65
4020	Expert as a Service Subscription X-Large Part #: ENB-SER-EXPSUB- XL	1	EA	\$172,815.59	\$172,815.59
4021	Expert as a Service Subscription Large Part #: ENB-SER-EXPSUB- L	1	EA	\$117,588.88	\$117,588.88
TOTAL OPTION YEAR 4					\$2,019,132.03
OPTION YEAR 4 OPTIONAL QUANTITIES					
Option Year 4 Optional Quantities may be exercised any time up to the maximum/not to exceed (NTE) value designated in the CLIN below in accordance with FAR 52.217-7 Option for Increased Quantity-- Separately Priced Line Item.					
4022	During the period of performance, with at least five (5) business days’ written notice to the Contactor, and not more than twice during the Base Period and each Option Period, the Government may exercise this optional task for additional quantities of license units of any of the AppDynamics products listed in Table 2 of the Product Description not to exceed the total amount of \$300,000.00 in Option Year 4. Unit prices paid for the products listed in Table 3 shall not exceed those listed in Attachment A, “Optional Quantities Pricing Spreadsheet”.			Not to Exceed (NTE)	\$300,000.00
TOTAL OPTION YEAR 4 AND OPTIONAL QUANTITIES					\$2,319,132.03
GRAND TOTAL INCLUDING OPTIONS					\$11,595,660.15

DELIVERABLES					
Contract Line Item	Description	QTY	UNIT	UNIT PRICE	TOTAL PRICE

Number (CLIN)					
5001	Deliverables IAW Section 1.3 AppDynamics True Forward Report	1	LO	NSP	NSP
5002	Deliverables IAW Section 1.5 AppD ELA Monthly Status Reporting	1	LO	NSP	NSP
5003	Deliverables IAW Section 1.6.1 Technical Kickoff Meeting Minutes	1	LO	NSP	NSP
5004	Deliverables IAW Section 1.6.2 Weekly JPMO meeting minutes	1	LO	NSP	NSP
5005	Deliverables IAW Section 1.6.3 Steering Committee Slides/Minutes	1	LO	NSP	NSP
5006	Deliverables IAW Section 1.6.4 AppD ELA End Report	1	LO	NSP	NSP
5007	Deliverables IAW Section 1.7.1 Consulting Activity Report	1	LO	NSP	NSP
5008	Deliverables IAW Section 4.1.2 Contractor Staff Roster	1	LO	NSP	NSP

B.5 PRODUCT DESCRIPTION (PD)



DEPARTMENT OF VETERANS AFFAIRS

Office of Information & Technology

DSO BOS BSD EISO

Cisco AppDynamics Enterprise License Agreement (AppD ELA)

Date: 08/30/2022

VA-23-00002507

PD Version Number: 1.0

1.0 PRODUCT REQUIREMENTS

The Department of Veterans Affairs (VA), Office of Information and Technology (OI&T), Development, Security, and Operations (DevSecOps), Enterprise Command Operations and Product Engineering requires continuation of existing software licenses and associated software maintenance support for VA owned and operated Cisco AppDynamics software products, as described in Table 1. Additionally, VA has a requirement to obtain additional AppDynamics products, listed in Table 2 below, to meet VA's expanding critical operational monitoring requirements, as further described in Section 1.3 "OPTIONAL QUANTITIES". The software maintenance support included in the base requirement listed in Table 1 shall include maintenance support for "swapped" licenses in accordance with Section 1.2 and any optional license quantities exercised in accordance with Section 1.3.

AppDynamics Pro Edition (used in production environment) and Test Edition (used in pre-production environment) is a set of performance management software capabilities that manages complex business-critical applications by detecting business impact and performance spikes, isolating bottlenecks in applications, and identifying root causes with complex code diagnostics. AppDynamics software monitoring features include end user, real time business translation, and visualization and management of entire applications. This tool is a vital element of the overall capability to monitor critical applications and services in the complex VA operational environment.

To meet this requirement, Enterprise Command Operations and Product Engineering requires the Contractor to provide the types and quantities of Cisco Brand Name AppDynamics licenses and associated maintenance described in Table 1. No other Cisco AppDynamic licenses or maintenance shall be provided without appropriate modifications to this contract.

TABLE 1				
CLIN	Description	Part Number	Tier	Base Qty
1	Production Cisco AppDynamics APM ANY LANGUAGE ON-PREM License	PRO-APM-ONPR	I	328
2	Production Cisco AppDynamics APM ANY LANGUAGE MICROSERVICES (5-PACK)	PRO-MCR-APM-ONPR	I	340
3	Production Cisco AppDynamics ADVANCED ANY LANGUAGE MICROSERVICES (5-PACK)	ADV-MCR-APM-ONPR	IV	40
4	Production Cisco AppDynamics BROWSER REAL USER MONITORING ON-PREM	PRO-BRUM-ONPR	I	259
5	Production Cisco AppDynamics BROWSER SYNTHETIC MONITORING PRIVATE AGENT UNLIMITED LOCATIONS	PRO-SYNPA-UL-ONPR	NA	1000
6	Production Cisco AppDynamics - DATABASE VISIBILITY - ON-PREM License	PRO-DB-ONPR	I	533
7	Production Cisco AppDynamics - LOG ANALYTICS - ON-PREM	PRO-LA-ONPR	NA	127
8	Production Cisco AppDynamics SERVER VISIBILITY (3-PACK) ON-PREM	PRO-SIM-ONPR	I	872
9	Pre-Production Cisco AppDynamics APM ANY LANGUAGE ON-PREM License	TST-APM-ONPR	I	97

TABLE 1				
CLIN	Description	Part Number	Tier	Base Qty
10	Pre-Production Cisco AppDynamics APM ANY LANGUAGE MICROSERVICES (5-PACK) ON-PREM	TST-MCR-APM-ONPR	I	400
11	Pre-Production Cisco AppDynamics ADVANCED ANY LANGUAGE MICROSERVICES (5-PACK)	TST-ADV-MCR-APM-ONPR	IV	35
12	Pre-Production Cisco AppDynamics BROWSER REAL USER MONITORING ON-PREM	TST-BRUM-ONPR	I	77
13	Pre-Production Cisco AppDynamics DATABASE VISIBILITY - ON-PREM	TST-DB-ONPR	I	221
14	Pre-Production Cisco AppDynamics LOG ANALYTICS ON- PREM	TST-LA-ONPR	NA	3
15	Pre-Production Cisco AppDynamics SERVER VISIBILITY (3-PACK) ON-PREM	TST-SIM-ONPR	I	476
16	AppDynamics Pro Edition - Mobile Real User Monitoring On-Premise	PRO-MRUM-ONPR	I	3
17	AppDynamics Pro Edition - Transaction Analytics - On-Premise	PRO-TA-ONPR	NA	36
18	AppDynamics Test & Dev Edition Mobile Real User Monitoring On-Premise	TST-MRUM-ONPR	I	3
19	AppDynamics Test & Dev Edition Transaction Analytics On-Premise	TST-TA-ONPR	NA	3

1.1 PERIOD OF PERFORMANCE

The Period of Performance (PoP) shall include one 12-month base period with four 12-month option periods.

1.2 LICENSE SWAP RIGHTS

During the period of performance, the Contractor shall, at written Government request, and limited to once per calendar quarter and within 24 business hours of said written notice, exchange licenses among the following types of Software license units: AppDynamics Pro Edition for APM Any Language, Server Visibility (3-pack), Database Visibility, Browser Real User Monitoring, Mobile Real User Monitoring, Log Analytics, Transaction Analytics (the "Exchangeable Group") on a one-for-one basis, and separately AppDynamics Test & Dev Edition for the same products on a one-for-one basis. The Government may not exchange any AppDynamics for Browser Real User Monitoring licenses during any year in which it has used any pageviews of such licenses. Swap rights shall not apply to Peak or Advanced Edition licenses.

License swaps may be initiated by the Government by contacting the contractor at: licensing-help@appdynamics.com.

The foregoing exchanges within Exchangeable License Group Tiers shall be made on the basis of the table below.

TABLE 2		
Exchangeable License Group Tiers	Pro Edition License Types within Tiers	Test & Dev License Types Within Tiers
<u>Tier 1</u>	APM Any Language APM Any Language Microservices (5-Pack) Server Visibility Browser Real User Monitoring Mobile Real User Monitoring AppDynamics for Database	APM Any Language APM Any Language Microservices (5-Pack) Server Visibility Browser Real User Monitoring Mobile Real User Monitoring AppDynamics for Database
<u>Tier 2</u>	Peak Edition – APM Any Language Peak Edition – APM Any Language Microservices (5-Pack)	Peak Edition – APM Any Language Peak Edition – APM Any Language Microservices (5-Pack)
<u>Tier 3</u>	Peak Edition – Browser Real User Monitoring Peak Edition – Mobile Real User Monitoring	Peak Edition – Browser Real User Monitoring Peak Edition – Mobile Real User Monitoring
<u>Tier 4</u>	Advanced Edition – APM Any Language Advanced Edition – APM Any Language Microservices (5-Pack)	Advanced Edition – APM Any Language Advanced Edition – APM Any Language Microservices (5-Pack)

The Government may not exchange: (1) any Browser Real User Monitoring licenses during any year in which it has used any pageviews of such licenses; (2) any EA Software within the Exchangeable License Group Tiers 2 or 3 if a Peak Edition license is currently in use; (3) between the SaaS and on-premises versions of any license in any Exchangeable License Group; and (4) exchange any EA Software in a specific Exchangeable License Group Tier for EA Software in any other Exchangeable Group Tier or vice-versa.

All license swap requests shall be in writing and documented via email which will be provided to the Program Manager and COR for submission to the Contractor.

1.3 OPTIONAL QUANTITIES (OPTIONAL TASK)

During the period of performance, with at least five (5) business days' written notice to the Contactor, and not more than twice during the Base Period and each Option Period, the Government may exercise this optional task for additional quantities of license units of any of the AppDynamics products listed in Table 2 above not to exceed the total amount of \$300,000.00 in the Base Period and each Option Period. Unit prices paid for the products listed in Table 2 shall not exceed those listed in Attachment XX "Optional Quantities Pricing Spreadsheet". If not exercised to begin at the start of any Option Period exercised by the Government, all optional quantities will co-term and be pro-rated with the period of performance within which they are exercised. The Optional Task modification shall specify the quantity and type of AppDynamics license required by the Government. Requests may not be for fewer than twenty-five AppDynamics licenses per request. Upon receipt of a signed modification exercising this optional task,

the Contractor shall provision and transmit to the Government the requested licensing in the types and quantities specified in the request. The price for these licenses will be at the same per-unit price as the lowest per-unit price for such AppDynamics license of the same license type as is stated in base license list (pro-rata for co-terming and excluding any items sold at no cost and/or other discounts containing the words “one-time”). Due to potential changes in use of this technology the Government has the right to reduce the total quantity of any set of AppDynamics licensing as needed. These requests shall be in writing and reflected in the AppDynamics True Forward Report. Reductions shall not affect any current period of performance but will be effective at the start of the next period of performance.

Deliverable:

- A. AppDynamics True Forward Report

1.4 SUPPORT SERVICES

The Contractor will provide access to a ticketing system that will be available twenty-four (24) hours per day, seven (7) days per week. The ticketing system will be maintained by Cisco AppDynamics support specialists who shall use commercially reasonable efforts to provide technical support regarding the Software.

Contractor Support shall be available twenty-four (24) hours per day, seven (7) days per week.

The Government will provide a list of designated support contacts that may request support under this agreement at time of contract award.

The Contractor shall provide software updates and upgrades for all products supported under this agreement.

The Contractor shall respond to error tickets in accordance with the tables set forth below. The Contractor will use commercially reasonable means to repair the error and keep the Government informed of progress.

Error	Initial Response and Acknowledgement to request	Contractor Manager Escalation	Contractor Vice President Escalation	Email Status Updates for Open Cases
Urgent	1 Hour	1 Business Day	1 Week	Daily
High	6 Hours	1 Week	2 Weeks	Weekly
Normal	1 Business Day	Quarterly Review for All Open Issues	None	None
Low	2 Business Days	Semi-Annual Review for All Open Issues	None	None

Reporting on all support services work will be completed in the monthly report as defined in Section 1.5 of this Product Description.

1.5 CISCO APPD ELA MONTHLY STATUS REPORTING

The Contractor shall provide the VA COR and Program Manager with a written AppD ELA Monthly Status Report in electronic form as defined in this Product Description. Use of electronic deliverables and shared data portals is optional but encouraged. The report shall include detailed instructions and explanations for each required data element, to ensure that data is accurate and consistent. These reports shall reflect data as of the last day of the preceding month. All references in this Product Description to “monthly” reporting requirements are inclusive of this report.

The AppD ELA Monthly Status Report shall provide a detailed summary of all work completed during the reporting period and any work planned for the subsequent reporting period. The report shall identify any problems that arose during the period and a description of how the problem(s) were resolved to include any issues with meeting performance metrics and service level agreements as defined in this Product Description. If problems have not been completely resolved, the Contractor shall provide an explanation including their plan and timeframe for resolving the issue. The Contractor shall keep in communication with VA regularly so that issues that arise are transparent to both parties to prevent escalation of outstanding issues.

After the technical kickoff meeting, a draft report format and proposed content structure shall be provided and concurred on by the COR and Program Manager.

Deliverable:

- A. AppD ELA Monthly Status Reporting

1.6 PROGRAM MEETINGS

1.6.1 TECHNICAL KICKOFF MEETING

The Contractor shall hold a AppD ELA technical kickoff meeting within 10 business days after contract award. The Contractor shall present, for review and approval by the Government, the details of the intended approach, work plan, and project schedule for each effort. The Contractor shall propose dates, agenda (shall be provided to all attendees at least five calendar days prior to the meeting), and meeting minutes (shall be provided to all attendees within three calendar days after the meeting). The Contractor shall invite the CO, Contract Specialist (CS), COR and VA Program Manager. The Technical kickoff meeting may be held virtually or at a VA approved location. In addition, the Contractor shall provide all final Technical Kickoff meeting minutes within five business days after the Kickoff Meeting. The Contractor shall track and oversee all Technical Kickoff meeting follow-on items to closure. Tracking of these items will be included in the Weekly Joint Program Management Office (JPMO) Meeting minutes as describe in Section 1.6.2 of this Product Description until closed.

Deliverable:

- A. Technical Kickoff Meeting Minutes

1.6.2 WEEKLY JOINT PROGRAM MANAGEMENT OFFICE MEETING

The Contractor shall engage and participate in a JPMO meetings between the VA COR, Program Manager, and Contractor staff. The Contractor (or its designated lead) shall discuss issues, track action items, discuss progress, review deliverables, and address any topics related to the services being provided under this contract. The Contractor shall deliver JPMO meeting minutes one day prior to the next scheduled meeting or within three business days, whichever comes first. The

meeting minutes shall also include any Contractor documentation that was provided for and/or presented at the weekly meetings. Reporting format for these meeting minutes shall be coordinated and approved by the COR and Program Manager. This JPMO meeting will be jointly conducted with the Cisco Business Critical Enterprise Service Agreement. The Program Manager shall oversee coordination of this reporting.

Deliverable:

- A. Weekly JPMO meeting minutes

1.6.3 QUARTERLY STEERING COMMITTEE MEETING

The Contractor shall participate in a joint Quarterly Steering Committee (QSC) review, conducted virtually, with DevSecOps leadership to brief on general progress and organizational priorities being supported under this contract. The QSC location will be announced at least 20 business days prior to the event and will be rotated at locations throughout VA. The QCS may be a mix of onsite and virtual attendees from both VA and the Contractor, with the participants primarily consisting of mid-level DevSecOps leadership. Tasks accomplished under the Contractor AppDynamics ELA team shall be reported and presented during this meeting. A draft report format and proposed content structure shall be provided and concurred on by the COR and Program Manager. All presentation slides/minutes shall be delivered at least 4 hours prior to any scheduled QSC. This QSC meeting will be jointly conducted with the Cisco Business Critical Enterprise Service Agreement QSC meeting.

Deliverable:

- A. Steering Committee Slides/Minutes

1.6.4 AppD ELA END REPORT

The Contractor shall provide a written report at the end of the agreement that specifies the number of perpetual licenses of each AppDynamics product consumed during the life of the agreement. At the end of the agreement without additional compensation of any kind, the number of fully paid up, worldwide, perpetual licenses (subject to termination as provided hereunder) granted by Cisco to the U.S. Department of Veterans Affairs will be equal to the number of licenses for such product specified in the AppD ELA End Report.

Deliverable:

- A. AppD ELA End Report

1.7 DEDICATED CONSULTING SUPPORT TASK

The Contractor shall provide to VA dedicated technical support by a qualified AppDynamics consultant who will assist the Government with engineering level consulting support activities to support AppDynamics licensing in use by the Government. This dedicated consulting support shall be provided under the following CLINS as a unified support service.

The Contractor consultant will be available to the Government throughout the period of performance during VA normal business hours (8:00 - 5:00 EST M-F). Support will be by remote access utilizing government furnished equipment.

CLIN	License Description	Part Number	Qty per PoP (Months)
20	Expert as a Service Subscription X-Large	ENB-SER-EXPSUB-XL	1
21	Expert as a Service Subscription Large	ENB-SER-EXPSUB-L	1

1.7.1 CONSULTING ACTIVITIES

Consulting activities supported by the contractor consultant shall generally include the following types of work efforts:

- Collaborative troubleshooting sessions
- Assist with implementation and advanced configuration tasks
- Knowledge transfer sessions on technical topics
- Provision or update of supporting guides and documentation templates
- Sharing of best practices and standard documentation
- Assist with building a community of users within the End User's enterprise to help facilitate knowledge transfers, obtaining user feedback, and increasing user adoption
- Educate End User teams on use of the Software
- Advise on the functionalities of new versions of the Software
- Assist in defining monitoring strategy
- Provide architectural guidance for monitoring integration
- Provide information on Software capabilities
- Coordinate all technical support requested by VA staff

All consulting activities shall be documented in a written report which will document the scope/objectives, work activities, and outcomes from the effort. This report will be consolidated and integrated with the monthly status report as defined in this Product Description.

Deliverable:

- A. Consulting Activity Report

2.0 SPECIAL SHIPPING INSTRUCTIONS

All electronic deliverables, will be through the vaoiteisoffice@va.gov mailbox. Deliverables will include updated software licensing information and instructions on how to place service requests. Payment of invoices will not be made without proper distribution of the deliverables.

3.0 GENERAL REQUIREMENTS

3.1 ENTERPRISE AND IT FRAMEWORK

3.1.1 VA TECHNICAL REFERENCE MODEL

The Contractor shall support the VA enterprise management framework. In association with the framework, the Contractor shall comply with OIT Technical Reference Model (VA TRM). The VA TRM is one component within the overall Enterprise Architecture (EA) that establishes a common vocabulary and structure for describing the information technology used to develop, operate, and maintain enterprise applications. Moreover, the VA TRM, which includes the Standards Profile and Product List, serves as a technology roadmap and tool for supporting OIT. Architecture & Engineering Services (AES) has overall responsibility for the VA TRM.

3.1.2 FEDERAL IDENTITY, CREDENTIAL, AND ACCESS MANAGEMENT (FICAM)

The Contractor shall ensure Commercial Off-The-Shelf (COTS) product(s), software configuration and customization, and/or new software are Personal Identity Verification (PIV) card-enabled by accepting HSPD-12 PIV credentials using VA Enterprise Technical Architecture (ETA), https://www.ea.oit.va.gov/EA/OIT/VA_EA/Enterprise_Technical_Architecture.asp, and VA Identity and Access Management (IAM) approved enterprise design and integration patterns, <https://www.oit.va.gov/library/recurring/edp/index.cfm>. The Contractor shall ensure all Contractor delivered applications and systems comply with the VA Identity, Credential, and Access Management policies and guidelines set forth in VA Handbook 6510 VA Identity and Access Management, VA Handbook 0735 Homeland Security Presidential Directive 12 (HSPD-12) Program, and align with the Federal Identity, Credential, and Access Management Roadmap and Implementation Guidance v2.0.

The Contractor shall ensure all Contractor delivered applications and systems provide user authentication services compliant with the National Institute of Standards and Technology (NIST) Special Publication (SP) 800-63-3, VA Handbook 6500 Appendix F, “VA System Security Controls”, and VA IAM enterprise requirements for direct, assertion based authentication, and/or trust based authentication, as determined by the design and integration patterns. Direct authentication at a minimum must include Public Key Infrastructure (PKI) based authentication supportive of PIV card and/or Common Access Card (CAC), as determined by the business need.

The Contractor shall ensure all Contractor delivered applications and systems conform to the specific Identity and Access Management PIV requirements set forth in the Office of Management and Budget (OMB) Memoranda M-05-24, M-19-17, and NIST Federal Information Processing Standard (FIPS) 201-2. OMB Memoranda M-05-24 and M-19-17 can be found at: <https://www.whitehouse.gov/sites/whitehouse.gov/files/omb/memoranda/2005/m05-24.pdf>, and <https://www.whitehouse.gov/wp-content/uploads/2019/05/M-19-17.pdf> respectively. Contractor delivered applications and systems shall be on the FIPS 201-2 Approved Product List (APL). If the Contractor delivered application and system is not on the APL, the Contractor shall be responsible for taking the application and system through the FIPS 201 Evaluation Program.

The Contractor shall ensure all Contractor delivered applications and systems support:

1. Automated provisioning and are able to use enterprise provisioning service.
2. Interfacing with VA’s Master Person Index (MPI) to provision identity attributes, if the solution relies on VA user identities. MPI is the authoritative source for VA user identity data.
3. The VA defined unique identity (Secure Identifier [SEC ID] / Integrated Control Number [ICN]).
4. Multiple authenticators for a given identity and authenticators at every Authenticator Assurance Level (AAL) appropriate for the solution.
5. Identity proofing for each Identity Assurance Level (IAL) appropriate for the solution.
6. Federation for each Federation Assurance Level (FAL) appropriate for the solution, if applicable.
7. Two-factor authentication (2FA) through an applicable design pattern as outlined in VA Enterprise Design Patterns.
8. A Security Assertion Markup Language (SAML) implementation if the solution relies on assertion-based authentication. Additional assertion implementations, besides the

required SAML assertion, may be provided as long as they are compliant with NIST SP 800-63-3 guidelines.

9. Authentication/account binding based on trusted Hypertext Transfer Protocol (HTTP) headers if the solution relies on Trust based authentication.
10. Role Based Access Control.
11. Auditing and reporting capabilities.
12. Compliance with VIEWS 00155984, PIV Logical Access Policy Clarification <https://www.voa.va.gov/DocumentView.aspx?DocumentID=4896>.

The required Assurance Levels for this specific effort are Identity Assurance Level 3, Authenticator Assurance Level 3, and Federation Assurance Level 3.

3.1.3 INTERNET PROTOCOL VERSION 6 (IPV6)

The Contractor solution shall support Internet Protocol Version 6 (IPv6) based upon the memo issued by the Office of Management and Budget (OMB) on November 19, 2020 (<https://www.whitehouse.gov/wp-content/uploads/2020/11/M-21-07.pdf>). IPv6 technology, in accordance with the USGv6 Program (<https://www.nist.gov/programs-projects/usgv6-program/usgv6-revision-1>), NIST Special Publication (SP) 500-267B Revision 1 “USGv6 Profile” (<https://doi.org/10.6028/NIST.SP.500-267Br1>), and NIST SP 800-119 “Guidelines for the Secure Deployment of IPv6” (<https://doi.org/10.6028/NIST.SP.800-119>), compliance shall be included in all IT infrastructures, application designs, application development, operational systems and sub-systems, and their integration. In addition to the above requirements, all devices shall support native IPv6 and dual stack (IPv6 / IPv4) connectivity without additional memory or other resources being provided by the Government, so that they can function in a mixed environment. All public/external facing servers and services (e.g. web, email, DNS, ISP services, etc.) shall support native IPv6 and dual stack (IPv6 / IPv4) users and all internal infrastructure and applications shall communicate using native IPv6 and dual stack (IPv6 / IPv4) operations.

3.1.4 TRUSTED INTERNET CONNECTION (TIC)

The Contractor solution shall meet the requirements outlined in Office of Management and Budget Memorandum M-19-26, “Update to the Trusted Internet Connections (TIC) Initiative” (<https://www.whitehouse.gov/wp-content/uploads/2019/09/M-19-26.pdf>), VA Directive 6513 “Secure External Connections”, and shall comply with the TIC 3.0 Core Guidance Documents, including all Volumes and TIC Use Cases, found at the Cybersecurity & Infrastructure Security Agency (CISA) (<https://www.cisa.gov/publication/tic-30-core-guidance-documents>). Any deviations must be approved by the VA TIC 3.0 Working Group at vaoisesatic30team@va.gov.

3.1.5 STANDARD COMPUTER CONFIGURATION

The Contractor IT end user solution that is developed for use on standard VA computers shall be compatible with and be supported on the standard VA operating system, currently Windows 10 (64bit), Edge (Chromium based), and 365 Apps for enterprise. Applications delivered to VA and intended to be deployed to Windows 10 workstations shall be delivered as a signed .msi package with switches for silent and unattended installation and updates shall be delivered in signed .msp file formats for easy deployment using Microsoft Endpoint Configuration Manager (CM) VA’s current desktop application deployment tool. Signing of the software code shall be through a vendor provided certificate that is trusted by VA using a code signing authority such as Verizon/Cybertrust or Symantec/VeriSign. The Contractor shall also ensure and certify that their solution functions as expected when used from a standard VA computer, with non-admin,

standard user rights that have been configured using the United States Government Configuration Baseline (USGCB) and Defense Information Systems Agency (DISA) Secure Technical Implementation Guide (STIG) specific to the particular client operating system being used.

3.1.6 VETERAN FOCUSED INTEGRATION PROCESS (VIP) AND PRODUCT LINE MANAGEMENT (PLM)

The Contractor shall support VA efforts IAW the updated Veteran Focused Integration Process (VIP) and Product Line Management (PLM). The major focus of the new VIP is on Governance and Reporting and is less prescriptive, with a focus on outcomes and continuous delivery of value. Product Line Management (PLM) is a framework that focuses on delivering functional products that provide the highest priority work to customers while delivering simplified, reliable, and practical solutions to the business, medical staff, and our Veterans. The VIP Guide is a companion guide to the PLM Playbook and can be found at:

<https://www.voa.va.gov/DocumentView.aspx?DocumentID=4371> and the PLM Playbook can be found at <https://www.voa.va.gov/DocumentView.aspx?DocumentID=4946>. The PLM Playbook pivots from project-centric to product-centric delivery and contains descriptive practices that focuses on outcomes. The PLM Playbook contains a set of “plays” that implement Development, Security, and Operations (DevSecOps) principles and processes such as automated development, continuous integration/continuous delivery, and release on demand. The PLM Playbook details how product lines implement Lean-Agile principles, methods, practices, and techniques through levels of maturity. VIP and PLM are the authoritative processes that IT projects must follow to ensure development and delivery of IT products.

3.1.7 PROCESS ASSET LIBRARY (PAL)

The Contractor shall perform their duties consistent with the processes defined in the OIT Process Asset Library (PAL). The PAL scope includes the full spectrum of OIT functions and activities, such as VIP project management, operations, service delivery, communications, acquisition, and resource management. PAL serves as an authoritative and informative repository of searchable processes, activities or tasks, roles, artifacts, tools and applicable standards and guides to assist the OIT workforce, Government and Contractor personnel. The Contractor shall follow the PAL processes to ensure compliance with policies and regulations and to meet VA quality standards. The PAL includes the contractor onboarding process consistent with Section 6.2.2 and can be found at https://www.va.gov/PROCESS/artifacts/maps/process_CONB_ext.pdf. The main PAL can be accessed at www.va.gov/process.

3.1.8 AUTHORITATIVE DATA SOURCES

The VA Enterprise Architecture Repository (VEAR) is one component within the overall EA that establishes the common framework for data taxonomy for describing the data architecture used to develop, operate, and maintain enterprise applications. The Contractor shall comply with the department’s Authoritative Data Source (ADS) requirement that VA systems, services, and processes throughout the enterprise shall access VA data solely through official VA ADSs where applicable, see below. The Information Classes which compose each ADS are located in the VEAR, in the Data & Information domain. The Contractor shall ensure that all delivered applications and system solutions support:

1. Interfacing with VA’s Master Person Index (MPI) (formerly the Master Veteran Index (MVI)) to provision identity attributes, if the solution relies on VA user identities. MPI is the authoritative source for VA user identity data.

2. Interfacing with Capital Asset Inventory (CAI) to conduct real property record management actions, if the solution relies on real property records data. CAI is the authoritative source for VA real property record management data.
3. Interfacing with electronic Contract Management System (eCMS) for access to contract, contract line item, purchase requisition, offering vendor and vendor, and solicitation information above the micro-purchase threshold, if the solution relies on procurement data. ECMS is the authoritative source for VA procurement actions data.
4. Interfacing with HRSmart Human Resources Information System to conduct personnel action processing, on-boarding, benefits management, and compensation management, if the solution relies on personnel data. HRSmart is the authoritative source for VA personnel information data.
5. Interfacing with Vet360 to access personal contact information, if the solution relies on VA Veteran personal contact information data. Vet360 is the authoritative source for VA Veteran Personal Contact Data.
6. Interfacing with VA/Department of Defense (DoD) Identity Repository (VADIR) for determining eligibility for VA benefits under Title 38, if the solution relies on qualifying active duty military service data. VADIR is the authoritative source for Qualifying Active Duty military service in VA.

3.1.9 SOCIAL SECURITY NUMBER (SSN) REDUCTION

The Contractor solution shall support the Social Security Number (SSN) Fraud Prevention Act (FPA) of 2017 which prohibits the inclusion of SSNs on any document sent by mail. The Contractor support shall also be performed in accordance with Section 240 of the Consolidated Appropriations Act (CAA) 2018, enacted March 23, 2018, which mandates VA to discontinue using SSNs to identify individuals in all VA information systems as the Primary Identifier. The Contractor shall ensure that any new IT solution discontinues the use of SSN as the Primary Identifier to replace the SSN with the ICN in all VA information systems for all individuals. The Contractor shall ensure that all Contractor delivered applications and systems integrate with the VA Master Person Index (MPI) for identity traits to include the use of the ICN as the Primary Identifier. The Contractor solution may only use a Social Security Number to identify an individual in an information system if and only if the use of such number is required to obtain information VA requires from an information system that is not under the jurisdiction of VA.

4.1 SECURITY AND PRIVACY REQUIREMENTS

4.1.1 POSITION/TASK RISK DESIGNATION LEVEL(S)

In accordance with VA Handbook 0710, Personnel Security and Suitability Program, the position sensitivity and the level of background investigation commensurate with the required level of access for the following tasks within the PWS are:

Position Sensitivity and Background Investigation Requirements by Task			
Task Number	Tier1 / Low Risk	Tier 2 / Moderate Risk	Tier 4 / High Risk
1.7	☐	☐	☒

The Tasks identified above and the resulting Position Sensitivity and Background Investigation requirements identify, in effect, the Background Investigation requirements for Contractor individuals, based upon the tasks the particular Contractor individual will be working. The

submitted Contractor Staff Roster must indicate the required Background Investigation Level for each Contractor individual based upon the tasks the Contractor individual will be working, in accordance with their submitted proposal.

4.1.2 CONTRACTOR PERSONNEL SECURITY REQUIREMENTS

Contractor Responsibilities:

- a. The Contractor shall prescreen all personnel requiring access to the computer systems to ensure they maintain the appropriate Background Investigation, and are able to read, write, speak, and understand the English language.
- b. Within 3 business days after award, the Contractor shall provide a roster of Contractor and Subcontractor employees to the COR to begin their background investigations in accordance with the PAL template artifact. The Contractor Staff Roster shall contain the Contractor's Full Name, Date of Birth, Place of Birth, individual background investigation level requirement (based upon Section 6.2 Tasks), etc. The Contractor shall submit full Social Security Numbers either within the Contractor Staff Roster or under separate cover to the COR. The Contractor Staff Roster shall be updated and provided to VA within 1 day of any changes in employee status, training certification completion status, Background Investigation level status, additions/removal of employees, etc. throughout the Period of Performance. The Contractor Staff Roster shall remain a historical document indicating all past information and the Contractor shall indicate in the Comment field, employees no longer supporting this contract. The preferred method to send the Contractor Staff Roster or Social Security Number is by encrypted e-mail. If unable to send encrypted e-mail, other methods which comply with FIPS 140-2 are to encrypt the file, use a secure fax, or use a traceable mail service.
- c. The Contractor should coordinate with the location of the nearest VA fingerprinting office through the COR. Only electronic fingerprints are authorized. The Contractor shall bring their completed Security and Investigations Center (SIC) Fingerprint request form with them (see paragraph d.4. below) when getting fingerprints taken.
- d. The Contractor shall ensure the following required forms are submitted to the COR within 5 days after contract award:
 - 1) Optional Form 306
 - 2) Self-Certification of Continuous Service
 - 3) VA Form 0710
 - 4) Completed SIC Fingerprint Request Form
- e. The Contractor personnel shall submit all required information related to their background investigations (completion of the investigation documents (SF85, SF85P, or SF 86) utilizing the Office of Personnel Management's (OPM) Electronic Questionnaire for Investigations Processing (e-QIP) after receiving an email notification from the Security and Investigation Center (SIC).
- f. The Contractor employee shall certify and release the e-QIP document, print, and sign the signature pages, and send them encrypted to the COR for electronic submission to the SIC. These documents shall be submitted to the COR within 3 business days of receipt of the e-QIP notification email. (Note: OPM is moving towards a "click to sign" process. If click to sign is used, the Contractor employee should notify the COR within 3 business days that documents were signed via e-QIP).
- g. The Contractor shall be responsible for the actions of all personnel provided to work for VA under this contract. In the event that damages arise from work performed by

Contractor provided personnel, under the auspices of this contract, the Contractor shall be responsible for all resources necessary to remedy the incident.

- h. A Contractor may be granted unescorted access to VA facilities and/or access to VA Information Technology resources (network and/or protected data) with a favorably adjudicated Special Agreement Check (SAC), completed training delineated in VA Handbook 6500.6 (Appendix C, Section 9), signed “Contractor Rules of Behavior”, and with a valid, operational PIV credential for PIV-only logical access to VA’s network. A PIV card credential can be issued once your SAC has been favorably adjudicated and your background investigation has been scheduled by OPM. However, the Contractor will be responsible for the actions of the Contractor personnel they provide to perform work for VA. The investigative history for Contractor personnel working under this contract must be maintained in the database of OPM.
- i. The Contractor, when notified of an unfavorably adjudicated background investigation on a Contractor employee as determined by the Government, shall withdraw the employee from consideration in working under the contract.
- j. Failure to comply with the Contractor personnel security investigative requirements may result in loss of physical and/or logical access to VA facilities and systems by Contractor and Subcontractor employees and/or termination of the contract for default.
- k. Identity Credential Holders must follow all HSPD-12 policies and procedures as well as use and protect their assigned identity credentials in accordance with VA policies and procedures, displaying their badges at all times, and returning the identity credentials upon termination of their relationship with VA.

Deliverable:

- A. Contractor Staff Roster

4.1.3 METHOD AND DISTRIBUTION OF DELIVERABLES

The Contractor shall deliver documentation in electronic format, unless otherwise directed in Section B of the solicitation/contract. Acceptable electronic media include: Microsoft 365, MS Word 2000/2003/2007/2010/2019, MS Excel 2000/2003/2007/2010/2019, MS PowerPoint 2000/2003/2007/2010/2019, MS Project 2000/2003/2007/2010/2019, MS Access 2000/2003/2007/2010, MS Visio 2000/2002/2003/2007/2010/2019, AutoCAD 2002/2004/2007/2010, and Adobe Postscript Data Format (PDF).

4.1.4 PERFORMANCE METRICS

The table below defines the Performance Standards and Acceptable Levels of Performance associated with this effort.

Performance Objective	Performance Standard	Acceptable Levels of Performance
A. Technical / Quality of Product or Service	1. Demonstrates understanding of requirements 2. Efficient and effective in meeting requirements 3. Meets technical needs and mission requirements 4. Provides quality services/products 5. Incorporates “ease of use” Human Centered Design principles in any software developed.	Satisfactory or higher
B. Project Milestones and Schedule	1. Established milestones and project dates are met 2. Products completed, reviewed, delivered in accordance with the established schedule 3. Notifies customer in advance of potential problems	Satisfactory or higher
C. Cost & Staffing	1. Currency of expertise and staffing levels appropriate to perform tasks required 2. Personnel possess necessary knowledge, skills, and abilities to perform tasks	Satisfactory or higher
D. Management	1. Integration and coordination of all activities to execute effort	Satisfactory or higher

The COR will utilize a Quality Assurance Surveillance Plan (QASP) throughout the life of the contract to ensure that the Contractor is performing the services required by this PWS in an acceptable level of performance. The Government reserves the right to alter or change the surveillance methods in the QASP at its own discretion

4.1.5 FACILITY/RESOURCE PROVISIONS

VA may provide remote access to VA specific systems/network in accordance with VA Handbook 6500, which requires the use of a VA approved method to connect external equipment/systems to VA’s network. Citrix Access Gateway (CAG) is the current and only VA approved method for remote access users when using or manipulating VA information for official VA Business. VA permits CAG remote access through approved Personally Owned Equipment (POE) and Other Equipment (OE) provided the equipment meets all applicable 6500 Handbook requirements for POE/OE. All of the security controls required for Government furnished equipment (GFE) must be utilized in approved POE or OE. The Contractor shall provide proof to the COR for review and approval that their POE or OE meets the VA Handbook

6500 requirements and VA Handbook 6500.6 Appendix C, herein incorporated as Addendum B, before use. CAG authorized users shall not be permitted to copy, print, or save any VA information accessed via CAG at any time. VA prohibits remote access to VA's network from non-North Atlantic Treaty Organization (NATO) countries. The exception to this are countries where VA has approved operations established (e.g. Philippines and South Korea). Exceptions are determined by the COR in coordination with the Information Security Officer (ISO) and Privacy Officer (PO).

This remote access may provide access to VA specific software such as Veterans Health Information System and Technology Architecture (VistA), ClearQuest, PAL, Primavera, and Remedy, including appropriate seat management and user licenses, depending upon the level of access granted. The Contractor shall utilize government-provided software development and test accounts, documents, and requirements repositories, etc. as required for the development, storage, maintenance, and delivery of products within the scope of this effort. The Contractor shall not transmit, store, or otherwise maintain sensitive data or products in Contractor systems (or media) within the VA firewall IAW VA Handbook 6500.6 dated March 12, 2010. All VA sensitive information shall be protected at all times in accordance with VA Handbook 6500, local security field office System Security Plans (SSP's) and Authority to Operate (ATO)'s for all systems/LAN's accessed while performing the tasks detailed in this PWS. The Contractor shall ensure all work is performed in countries deemed not to pose a significant security risk. For detailed Security and Privacy Requirements (additional requirements of the contract consolidated into an addendum for easy reference) refer to ADDENDUM A – ADDITIONAL VA REQUIREMENTS, CONSOLIDATED and ADDENDUM B - VA INFORMATION AND INFORMATION SYSTEM SECURITY/PRIVACY LANGUAGE.

4.1.6 GOVERNMENT FURNISHED PROPERTY

The Government has multiple remote access solutions available to include Citrix Access Gateway (CAG), Site-to-Site Virtual Private Network (VPN), and RESCUE VPN.

The Government's issuance of Government Furnished Equipment (GFE) is limited to Contractor personnel requiring direct access to the network to: development environments; install, configure and run Technical Reference Model (TRM) approved software and tools (e.g., Oracle, Fortify, Eclipse, SoapUI, WebLogic, LoadRunner); upload/download/ manipulate code, run scripts, and apply patches; configure and change system settings; check logs, troubleshoot/debug, and test/QA.

When necessary, the Government will furnish desktops or laptops, for use by the Contractor to access VA networks, systems, or applications to meet the requirements of this PWS. The overarching goal is to determine the most cost-effective approach to providing needed access to the VA environment coupled with the need to ensure proper Change Management principles are followed. Contractor personnel shall adhere to all VA system access requirements for on-site and remote users in accordance with VA standards, local security regulations, policies, and rules of behavior. GFE shall be approved by the COR and Program Manager on a case-by-case basis prior to issuance.

Based upon the Government assessment of remote access solutions and requirements of this effort, the Government estimates that the following GFE will be required by this effort:

1. **One (1) laptop**

The Government will not provide IT accessories including but not limited to Mobile Wi-Fi hotspots/wireless access points, additional or specialized keyboards or mice, laptop bags, extra charging cables, extra Personal Identity Verification card readers, peripheral devices, or additional Random Access Memory (RAM). The Contractor is responsible for providing these types of IT accessories in support of this effort as necessary and any VA installation required for these IT accessories shall be coordinated with the COR.

Additionally, the Contractor shall provide a status of all reportable GFE as part of the **Monthly** Status Report as required by PWS paragraph 5.1. For purposes of this report, reportable GFE includes equipment that is furnished by the Government as tangible “personal” property which the Contractor takes possession of, physically leaves a Government facility, and needs to be returned the end of Contractor performance. The following information shall be provided for each piece of GFE:

1. Name of Contractor employee assigned to the GFE
2. Type of Equipment (Make and Model)
3. Tracking Number/Serial Number
4. VA Bar Code
5. Location
6. Value
7. Total Value of Equipment
8. Anticipated Transfer Date to Government
9. Anticipated Transfer Location

ADDENDUM A – ADDITIONAL VA REQUIREMENTS, CONSOLIDATED

A1.0 Cyber and Information Security Requirements for VA IT Services

The Contractor shall ensure adequate LAN/Internet, data, information, and system security in accordance with VA standard operating procedures and standard PWS language, conditions, laws, and regulations. The Contractor's firewall and web server shall meet or exceed VA minimum requirements for security. All VA data shall be protected behind an approved firewall. Any security violations or attempted violations shall be reported to the VA Program Manager and VA Information Security Officer as soon as possible. The Contractor shall follow all applicable VA policies and procedures governing information security, especially those that pertain to assessment and authorization and continuous monitoring

Contractor supplied equipment, PCs of all types, equipment with hard drives, etc. for contract services must meet all security requirements that apply to Government Furnished Equipment (GFE) and Government Owned Equipment (GOE). Security Requirements include: a) VA Approved Encryption Software must be installed on all laptops or mobile devices before placed into operation, b) Bluetooth equipped devices are prohibited within VA; Bluetooth must be permanently disabled or removed from the device, unless the connection uses FIPS 140-2 (or its successor) validated encryption, c) VA approved anti-virus and firewall software, d) Equipment must meet all VA sanitization requirements and procedures before disposal. The COR, CO, the PM, and the Information Security Officer (ISO) must be notified and verify all security requirements have been adhered to.

Each documented initiative under this contract incorporates VA Handbook 6500.6, "Contract Security," March 12, 2010 by reference as though fully set forth therein. The VA Handbook 6500.6, "Contract Security" shall also be included in every related agreement, contract, or order. The VA Handbook 6500.6, Appendix C, is included in this document as Addendum B.

Training requirements: The Contractor shall complete all mandatory training courses on the current VA training site, the VA Talent Management System (TMS) 2.0, and will be tracked therein. The TMS 2.0 may be accessed at <https://www.tms.va.gov/SecureAuth35/>. If you do not have a TMS 2.0 profile, go to <https://www.tms.va.gov/SecureAuth35/> and click on the "Create New User" link on the TMS 2.0 to gain access.

Contractor employees shall complete a VA Systems Access Agreement if they are provided access privileges as an authorized user of the computer system of VA.

A2.0 VA Enterprise Architecture Compliance

The applications, supplies, and services furnished under this contract must comply with VA Enterprise Architecture (EA), available at <http://www.ea.oit.va.gov/index.asp> in force at the time of issuance of this contract, including the Program Management Plan and VA's rules, standards, and guidelines in the Technical Reference Model/Standards Profile (TRMSP). VA reserves the right to assess contract deliverables for EA compliance prior to acceptance.

A2.1. VA Internet and Intranet Standards

The Contractor shall adhere to and comply with VA Directive 6102 and VA Handbook 6102, Internet/Intranet Services, including applicable amendments and changes, if the Contractor's work includes managing, maintaining, establishing, and presenting information on VA's

Internet/Intranet Service Sites. This pertains, but is not limited to: creating announcements; collecting information; databases to be accessed, graphics and links to external sites.

Internet/Intranet Services Directive 6102 is posted at (copy and paste the following URL to browser): https://www.va.gov/vapubs/viewPublication.asp?Pub_ID=1056&FType=2

Internet/Intranet Services Handbook 6102 is posted at (copy and paste following URL to browser): https://www.va.gov/vapubs/viewPublication.asp?Pub_ID=1055&FType=2

A3.0 Notice of the Federal Accessibility Law Affecting All Information and Communication Technology (ICT) Procurements (Section 508)

On January 18, 2017, the Architectural and Transportation Barriers Compliance Board (Access Board) revised and updated, in a single rulemaking, standards for electronic and information technology developed, procured, maintained, or used by Federal agencies covered by Section 508 of the Rehabilitation Act of 1973, as well as our guidelines for telecommunications equipment and customer premises equipment covered by Section 255 of the Communications Act of 1934. The revisions and updates to the Section 508-based standards and Section 255-based guidelines are intended to ensure that information and communication technology (ICT) covered by the respective statutes is accessible to and usable by individuals with disabilities.

A3.1. Section 508 – Information and Communication Technology (ICT) Standards

The Section 508 standards established by the Access Board are incorporated into, and made part of all VA orders, solicitations and purchase orders developed to procure ICT. These standards are found in their entirety at: <https://www.access-board.gov/guidelines-and-standards/communications-and-it/about-the-ict-refresh/final-rule/text-of-the-standards-and-guidelines>. A printed copy of the standards will be supplied upon request.

Federal agencies must comply with the updated Section 508 Standards beginning on January 18, 2018. The Final Rule as published in the Federal Register is available from the Access Board: <https://www.access-board.gov/guidelines-and-standards/communications-and-it/about-the-ict-refresh/final-rule>.

The Contractor shall comply with “508 Chapter 2: Scoping Requirements” for all electronic ICT and content delivered under this contract. Specifically, as appropriate for the technology and its functionality, the Contractor shall comply with the technical standards marked here:

- ☒ E205 Electronic Content – (Accessibility Standard -WCAG 2.0 Level A and AA Guidelines)
- ☒ E204 Functional Performance Criteria
- ☒ E206 Hardware Requirements
- ☒ E207 Software Requirements
- ☒ E208 Support Documentation and Services Requirements

A3.2. Compatibility with Assistive Technology

The standards do not require installation of specific accessibility-related software or attachment of an assistive technology device. Section 508 requires that ICT be compatible with such software and devices so that ICT can be accessible to and usable by individuals using assistive technology, including but not limited to screen readers, screen magnifiers, and speech recognition software.

A3.3. Acceptance and Acceptance Testing

Deliverables resulting from this solicitation will be accepted based in part on satisfaction of the Section 508 Chapter 2: Scoping Requirements standards identified above.

The Government reserves the right to test for Section 508 Compliance before delivery. The Contractor shall be able to demonstrate Section 508 Compliance upon delivery.

A4.0 Physical Security & Safety Requirements:

The Contractor and their personnel shall follow all VA policies, standard operating procedures, applicable laws and regulations while on VA property. Violations of VA regulations and policies may result in citation and disciplinary measures for persons violating the law.

1. The Contractor and their personnel shall wear visible identification at all times while they are on the premises.
2. VA does not provide parking spaces at the work site; the Contractor must obtain parking at the work site if needed. It is the responsibility of the Contractor to park in the appropriate designated parking areas. VA will not invalidate or make reimbursement for parking violations of the Contractor under any conditions.
3. Smoking is prohibited inside/outside any building other than the designated smoking areas.
4. Possession of weapons is prohibited.
5. The Contractor shall obtain all necessary licenses and/or permits required to perform the work, with the exception of software licenses that need to be procured from a Contractor or vendor in accordance with the requirements document. The Contractor shall take all reasonable precautions necessary to protect persons and property from injury or damage during the performance of this contract.

A5.0 Confidentiality and Non-Disclosure

The Contractor shall follow all VA rules and regulations regarding information security to prevent disclosure of sensitive information to unauthorized individuals or organizations.

The Contractor may have access to Protected Health Information (PHI) and Electronic Protected Health Information (EPHI) that is subject to protection under the regulations issued by the Department of Health and Human Services, as mandated by the Health Insurance Portability and Accountability Act of 1996 (HIPAA); 45 CFR Parts 160 and 164, Subparts A and E, the Standards for Privacy of Individually Identifiable Health Information ("Privacy Rule"); and 45 CFR Parts 160 and 164, Subparts A and C, the Security Standard ("Security Rule"). Pursuant to the Privacy and Security Rules, the Contractor must agree in writing to certain mandatory provisions regarding the use and disclosure of PHI and EPHI.

1. The Contractor will have access to some privileged and confidential materials of VA. These printed and electronic documents are for internal use only, are not to be copied or released without permission, and remain the sole property of VA. Some of these materials are protected by the Privacy Act of 1974 (revised by PL 93-5791) and Title 38. Unauthorized disclosure of Privacy Act or Title 38 covered materials is a criminal offense.
2. The VA CO will be the sole authorized official to release in writing, any data, draft deliverables, final deliverables, or any other written or printed materials pertaining to this contract. The Contractor shall release no information. Any request for information relating to this contract presented to the Contractor shall be submitted to the VA CO for response.
3. Contractor personnel recognize that in the performance of this effort, Contractor personnel may receive or have access to sensitive information, including information provided on a

proprietary basis by carriers, equipment manufacturers and other private or public entities. Contractor personnel agree to safeguard such information and use the information exclusively in the performance of this contract. Contractor shall follow all VA rules and regulations regarding information security to prevent disclosure of sensitive information to unauthorized individuals or organizations as enumerated in this section and elsewhere in this Contract and its subparts and appendices.

4. Contractor shall limit access to the minimum number of personnel necessary for contract performance for all information considered sensitive or proprietary in nature. If the Contractor is uncertain of the sensitivity of any information obtained during the performance this contract, the Contractor has a responsibility to ask the VA CO.
5. Contractor shall train all of their employees involved in the performance of this contract on their roles and responsibilities for proper handling and nondisclosure of sensitive VA or proprietary information. Contractor personnel shall not engage in any other action, venture or employment wherein sensitive information shall be used for the profit of any party other than those furnishing the information. The sensitive information transferred, generated, transmitted, or stored herein is for VA benefit and ownership alone.
6. Contractor shall maintain physical security at all facilities housing the activities performed under this contract, including any Contractor facilities according to VA-approved guidelines and directives. The Contractor shall ensure that security procedures are defined and enforced to ensure all personnel who are provided access to patient data must comply with published procedures to protect the privacy and confidentiality of such information as required by VA.
7. Contractor must adhere to the following:
 - a. The use of "thumb drives" or any other medium for transport of information is expressly prohibited.
 - b. Controlled access to system and security software and documentation.
 - c. Recording, monitoring, and control of passwords and privileges.
 - d. All terminated personnel are denied physical and electronic access to all data, program listings, data processing equipment and systems.
 - e. VA, as well as any Contractor (or Subcontractor) systems used to support development, provide the capability to cancel immediately all access privileges and authorizations upon employee termination.
 - f. Contractor PM and VA PM are informed within twenty-four (24) hours of any employee termination.
 - g. Acquisition sensitive information shall be marked "Acquisition Sensitive" and shall be handled as "For Official Use Only (FOUO)".
 - h. Contractor does not require access to classified data.
8. Regulatory standard of conduct governs all personnel directly and indirectly involved in procurements. All personnel engaged in procurement and related activities shall conduct business in a manner above reproach and, except as authorized by statute or regulation, with complete impartiality and with preferential treatment for none. The general rule is to strictly avoid any conflict of interest or even the appearance of a conflict of interest in VA/Contractor relationships.
9. VA Form 0752 shall be completed by all Contractor employees working on this contract, and shall be provided to the CO before any work is performed. In the case that Contractor personnel are replaced in the future, their replacements shall complete VA Form 0752 prior to beginning work.

A6.0 INFORMATION TECHNOLOGY USING ENERGY-EFFICIENT PRODUCTS

Not Applicable

ADDENDUM B – VA INFORMATION AND INFORMATION SYSTEM SECURITY/PRIVACY LANGUAGE

APPLICABLE PARAGRAPHS TAILORED FROM: THE VA INFORMATION AND INFORMATION SYSTEM SECURITY/PRIVACY LANGUAGE, VA HANDBOOK 6500.6, APPENDIX C, MARCH 12, 2010

B.1 GENERAL

Contractors, Contractor personnel, Subcontractors, and Subcontractor personnel shall be subject to the same Federal laws, regulations, standards, and VA Directives and Handbooks as VA and VA personnel regarding information and information system security.

B.2 ACCESS TO VA INFORMATION AND VA INFORMATION SYSTEMS

a. A Contractor/Subcontractor shall request logical (technical) or physical access to VA information and VA information systems for their employees, Subcontractors, and affiliates only to the extent necessary to perform the services specified in the contract, agreement, or task order.

b. All Contractors, Subcontractors, and third-party servicers and associates working with VA information are subject to the same investigative requirements as those of VA appointees or employees who have access to the same types of information. The level and process of background security investigations for Contractors must be in accordance with VA Directive and Handbook 0710, Personnel Suitability and Security Program. The Office for Operations, Security, and Preparedness is responsible for these policies and procedures.

c. Delivery order personnel who require access to national security programs must have a valid security clearance. National Industrial Security Program (NISP) was established by Executive Order 12829 to ensure that cleared U.S. defense industry delivery order/contract personnel safeguard the classified information in their possession while performing work on contracts, programs, bids, or research and development efforts. The Department of Veterans Affairs does not have a Memorandum of Agreement with Defense Security Service (DSS). Verification of a Security Clearance must be processed through the Special Security Officer located in the Planning and National Security Service within the Office of Operations, Security, and Preparedness.

d. Custom software development and outsourced operations must be located in the U.S. to the maximum extent practical. If such services are proposed to be performed abroad and are not disallowed by other VA policy or mandates (e.g. Business Associate Agreement, Section 3G), the Contractor/Subcontractor must state where all non-U.S. services are provided and detail a security plan, deemed to be acceptable by VA, specifically to address mitigation of the resulting problems of communication, control, data protection, and so forth. Location within the U.S. may be an evaluation factor.

e. The Contractor or Subcontractor must notify the CO immediately when an employee working on a VA system or with access to VA information is reassigned or leaves the Contractor or Subcontractor's employ. The CO must also be notified immediately by the Contractor or Subcontractor prior to an unfriendly termination.

B.3 VA INFORMATION CUSTODIAL LANGUAGE

1. Information made available to the Contractor or Subcontractor by VA for the performance or administration of this delivery order or information developed by the Contractor/Subcontractor in performance or administration of the delivery order shall be used only for those purposes and shall not be used in any other way without the prior written agreement of VA. This clause expressly limits the Contractor/Subcontractor's rights to use data as described in Rights in Data - General, FAR 52.227-14(d) (1).
2. VA information should not be co-mingled, if possible, with any other data on the Contractors/Subcontractor's information systems or media storage systems in order to ensure VA requirements related to data protection and media sanitization can be met. If co-mingling must be allowed to meet the requirements of the business need, the Contractor must ensure that VA information is returned to VA or destroyed in accordance with VA's sanitization requirements. VA reserves the right to conduct on-site inspections of Contractor and Subcontractor IT resources to ensure data security controls, separation of data and job duties, and destruction/media sanitization procedures are in compliance with VA directive requirements.
3. Prior to termination or completion of this contract, Contractor/Subcontractor must not destroy information received from VA, or gathered/created by the Contractor in the course of performing this delivery order without prior written approval by VA. Any data destruction done on behalf of VA by a Contractor/Subcontractor must be done in accordance with National Archives and Records Administration (NARA) requirements as outlined in VA Directive 6300, Records and Information Management and its Handbook 6300.1 Records Management Procedures, applicable VA Records Control Schedules, and VA Handbook 6500.1, Electronic Media Sanitization. Self-certification by the Contractor that the data destruction requirements above have been met must be sent to the VA CO within 30 days of termination of the contract.
4. The Contractor/Subcontractor must receive, gather, store, back up, maintain, use, disclose and dispose of VA information only in compliance with the terms of the delivery order and applicable Federal and VA information confidentiality and security laws, regulations and policies. If Federal or VA information confidentiality and security laws, regulations and policies become applicable to VA information or information systems after execution of the contract, or if NIST issues or updates applicable FIPS or Special Publications (SP) after execution of this contract, the parties agree to negotiate in good faith to implement the information confidentiality and security laws, regulations and policies in this contract.
5. The Contractor/Subcontractor shall not make copies of VA information except as authorized and necessary to perform the terms of the agreement or to preserve electronic information stored on Contractor/Subcontractor electronic storage media for restoration in case any electronic equipment or data used by the Contractor/Subcontractor needs to be restored to an operating state. If copies are made for restoration purposes, after the restoration is complete, the copies must be appropriately destroyed.
6. If VA determines that the Contractor has violated any of the information confidentiality, privacy, and security provisions of the contract, it shall be sufficient grounds for VA to withhold payment to the Contractor or third party or terminate the delivery order for default or terminate for cause under Federal Acquisition Regulation (FAR) part 12.

7. If a VHA delivery order/contract is terminated for cause, the associated Business Associate Agreement (BAA) must also be terminated and appropriate actions taken in accordance with VHA Directive 1605.05, Business Associate Agreements. Absent an agreement to use or disclose protected health information, there is no business associate relationship.

8. The Contractor/Subcontractor must store, transport, or transmit VA sensitive information in an encrypted form, using VA-approved encryption tools that are, at a minimum, FIPS 140-2 validated.

9. The Contractor/Subcontractor's firewall and Web services security controls, if applicable, shall meet or exceed VA minimum requirements. VA Configuration Guidelines are available upon request.

10. Except for uses and disclosures of VA information authorized by this delivery order for performance of the contract, the Contractor/Subcontractor may use and disclose VA information only in two other situations: (i) in response to a qualifying order of a court of competent jurisdiction, or (ii) with VA prior written approval. The Contractor/Subcontractor must refer all requests for, demands for production of, or inquiries about, VA information and information systems to the VA CO for response.

11. Notwithstanding the provision above, the Contractor/Subcontractor shall not release VA records protected by Title 38 U.S.C. 5705, confidentiality of medical quality assurance records and/or Title 38 U.S.C. 7332, confidentiality of certain health records pertaining to drug addiction, sickle cell anemia, alcoholism or alcohol abuse, or infection with human immunodeficiency virus. If the Contractor/Subcontractor is in receipt of a court order or other requests for the above-mentioned information, that Contractor/Subcontractor shall immediately refer such court orders or other requests to the VA CO for response.

12. For service that involves the storage, generating, transmitting, or exchanging of VA sensitive information but does not require Assessment and Authorization (A&A) or a Memorandum of Understanding-Interconnection Security Agreement (MOU-ISA) for system interconnection, the Contractor/Subcontractor must complete a Contractor Security Control Assessment (CSCA) on a yearly basis and provide it to the COR.

B.4 INFORMATION SYSTEM DESIGN AND DEVELOPMENT

1. Information systems that are designed or developed for or on behalf of VA at non-VA facilities shall comply with all VA directives developed in accordance with FISMA, HIPAA, NIST, and related VA security and privacy control requirements for Federal information systems. This includes standards for the protection of electronic PHI, outlined in 45 C.F.R. Part 164, Subpart C, information and system security categorization level designations in accordance with FIPS 199 and FIPS 200 with implementation of all baseline security controls commensurate with the FIPS 199 system security categorization (reference VA Handbook 6500, Risk Management Framework for VA Information Systems – Tier 3: VA Information Security Program, and the TIC Reference Architecture). During the development cycle a Privacy Impact Assessment (PIA) must be completed, provided to the COR, and approved by the VA Privacy Service in accordance with Directive 6508, Implementation of Privacy Threshold Analysis and Privacy Impact Assessment.

2. The Contractor/Subcontractor shall certify to the COR that applications are fully functional and operate correctly as intended on systems using the VA Federal Desktop Core Configuration (FDCC), and the common security configuration guidelines provided by NIST or VA. This includes Internet Explorer 11 configured to operate on Windows 10 and future versions, as required.

3. The standard installation, operation, maintenance, updating, and patching of software shall not alter the configuration settings from the VA approved and FDCC configuration. Information technology staff must also use the Windows Installer Service for installation to the default “program files” directory and silently install and uninstall.

4. Applications designed for normal end users shall run in the standard user context without elevated system administration privileges.

5. The security controls must be designed, developed, approved by VA, and implemented in accordance with the provisions of VA security system development life cycle as outlined in NIST Special Publication 800-37, Guide for Applying the Risk Management Framework to Federal Information Systems, VA Handbook 6500, Risk Management Framework for VA Information Systems – Tier 3: VA Information Security Program and VA Handbook 6500.5, Incorporating Security and Privacy in System Development Lifecycle.

6. The Contractor/Subcontractor is required to design, develop, or operate a System of Records Notice (SOR) on individuals to accomplish an agency function subject to the Privacy Act of 1974, (as amended), Public Law 93-579, December 31, 1974 (5 U.S.C. 552a) and applicable agency regulations. Violation of the Privacy Act may involve the imposition of criminal and civil penalties.

7. The Contractor/Subcontractor agrees to:

a. Comply with the Privacy Act of 1974 (the Act) and the agency rules and regulations issued under the Act in the design, development, or operation of any system of records on individuals to accomplish an agency function when the delivery order specifically identifies:

i. The Systems of Records (SOR); and

ii. The design, development, or operation work that the Contractor/Subcontractor is to perform;

b. Include the Privacy Act notification contained in this delivery order in every solicitation and resulting subcontract and in every subcontract awarded without a solicitation, when the work statement in the proposed subcontract requires the redesign, development, or operation of a SOR on individuals that is subject to the Privacy Act; and

c. Include this Privacy Act clause, including this subparagraph (c), in all subcontracts awarded under this delivery order which requires the design, development, or operation of such a SOR.

8. In the event of violations of the Act, a civil action may be brought against the agency involved when the violation concerns the design, development, or operation of a SOR on

individuals to accomplish an agency function, and criminal penalties may be imposed upon the officers or employees of the agency when the violation concerns the operation of a SOR on individuals to accomplish an agency function. For purposes of the Act, when the delivery order is for the operation of a SOR on individuals to accomplish an agency function, the Contractor/Subcontractor is considered to be an employee of the agency.

a. “Operation of a System of Records” means performance of any of the activities associated with maintaining the SOR, including the collection, use, maintenance, and dissemination of records.

b. “Record” means any item, collection, or grouping of information about an individual that is maintained by an agency, including, but not limited to, education, financial transactions, medical history, and criminal or employment history and contains the person’s name, or identifying number, symbol, or any other identifying particular assigned to the individual, such as a fingerprint or voiceprint, or a photograph.

c. “System of Records” means a group of any records under the control of any agency from which information is retrieved by the name of the individual or by some identifying number, symbol, or other identifying particular assigned to the individual.

9. The vendor shall ensure the security of all procured or developed systems and technologies, including their subcomponents (hereinafter referred to as “Systems”), throughout the life of this delivery order and any extension, warranty, or maintenance periods. This includes, but is not limited to workarounds, patches, hot fixes, upgrades, and any physical components (hereafter referred to as Security Fixes) which may be necessary to fix all security vulnerabilities published or known to the vendor anywhere in the Systems, including Operating Systems and firmware. The vendor shall ensure that Security Fixes shall not negatively impact the Systems.

10. The vendor shall notify VA within 24 hours of the discovery or disclosure of successful exploits of the vulnerability which can compromise the security of the Systems (including the confidentiality or integrity of its data and operations, or the availability of the system). Such issues shall be remediated as quickly as is practical, but in no event longer than 2 days.

11. When the Security Fixes involve installing third party patches (such as Microsoft OS patches or Adobe Acrobat), the vendor will provide written notice to VA that the patch has been validated as not affecting the Systems within 10 working days. When the vendor is responsible for operations or maintenance of the Systems, they shall apply the Security Fixes within 10 days.

12. All other vulnerabilities shall be remediated as specified in this paragraph in a timely manner based on risk, but within 60 days of discovery or disclosure. Exceptions to this paragraph (e.g. for the convenience of VA) shall only be granted with approval of the CO and the VA Assistant Secretary for Office of Information and Technology.

B.5 INFORMATION SYSTEM HOSTING, OPERATION, MAINTENANCE, OR USE

a. For information systems that are hosted, operated, maintained, or used on behalf of VA at non-VA facilities, Contractors/Subcontractors are fully responsible and accountable for ensuring compliance with all HIPAA, Privacy Act, FISMA, NIST, FIPS, and VA security and privacy directives and handbooks. This includes conducting compliant risk assessments, routine vulnerability scanning, system patching and change management procedures, and the completion of an acceptable contingency plan for each system. The Contractor's security control procedures must be equivalent, to those procedures used to secure VA systems. A Privacy Impact Assessment (PIA) must also be provided to the COR and approved by VA Privacy Service prior to operational approval. All external Internet connections to VA network involving VA information must be in accordance with the TIC Reference Architecture and reviewed and approved by VA prior to implementation. For Cloud Services hosting, the Contractor shall also ensure compliance with the Federal Risk and Authorization Management Program (FedRAMP).

b. Adequate security controls for collecting, processing, transmitting, and storing of Personally Identifiable Information (PII), as determined by the VA Privacy Service, must be in place, tested, and approved by VA prior to hosting, operation, maintenance, or use of the information system, or systems by or on behalf of VA. These security controls are to be assessed and stated within the PIA and if these controls are determined not to be in place, or inadequate, a Plan of Action and Milestones (POA&M) must be submitted and approved prior to the collection of PII.

c. Outsourcing (Contractor facility, Contractor equipment or Contractor staff) of systems or network operations, telecommunications services, or other managed services requires A&A of the Contractor's systems in accordance with VA Handbook 6500.3, Assessment, Authorization and Continuous Monitoring of VA Information Systems and/or the VA OCS Certification Program Office. Government-owned (Government facility or Government equipment) Contractor-operated systems, third party or business partner networks require memorandums of understanding and interconnection security agreements (MOU-ISA) which detail what data types are shared, who has access, and the appropriate level of security controls for all systems connected to VA networks.

d. The Contractor/Subcontractor's system must adhere to all FISMA, FIPS, and NIST standards related to the annual FISMA security controls assessment and review and update the PIA. Any deficiencies noted during this assessment must be provided to the VA CO and the ISO for entry into the VA POA&M management process. The Contractor/Subcontractor must use the VA POA&M process to document planned remedial actions to address any deficiencies in information security policies, procedures, and practices, and the completion of those activities. Security deficiencies must be corrected within the timeframes approved by the Government. Contractor/Subcontractor procedures are subject to periodic, unannounced assessments by VA officials, including the VA Office of Inspector General. The physical security aspects associated with Contractor/Subcontractor activities must also be subject to such assessments. If major changes to the system occur that may affect the privacy or security of the data or the system, the A&A of the system may need to be reviewed, retested and re-authorized per VA Handbook 6500.3. This may require reviewing and updating all of the documentation (PIA, System Security Plan, and Contingency Plan). The Certification Program Office can provide guidance on whether a new A&A would be necessary.

e. The Contractor/Subcontractor must conduct an annual self-assessment on all systems and outsourced services as required. Both hard copy and electronic copies of the assessment must be provided to the COR. The Government reserves the right to conduct such an assessment using Government personnel or another Contractor/Subcontractor. The Contractor/Subcontractor must take appropriate and timely action (this can be specified in the contract) to correct or mitigate any weaknesses discovered during such testing, generally at no additional cost.

f. VA prohibits the installation and use of personally owned or Contractor/Subcontractor owned equipment or software on the VA network. If non-VA owned equipment must be used to fulfill the requirements of a contract, it must be stated in the service agreement, SOW, or contract. All of the security controls required for Government furnished equipment (GFE) must be utilized in approved other equipment (OE) and must be funded by the owner of the equipment. All remote systems must be equipped with, and use, a VA-approved antivirus (AV) software and a personal (host-based or enclave based) firewall that is configured with a VA approved configuration. Software must be kept current, including all critical updates and patches. Owners of approved OE are responsible for providing and maintaining the anti-viral software and the firewall on the non-VA owned OE.

g. All electronic storage media used on non-VA leased or non-VA owned IT equipment that is used to store, process, or access VA information must be handled in adherence with VA Handbook 6500.1, Electronic Media Sanitization upon: (i) completion or termination of the delivery order or (ii) disposal or return of the IT equipment by the Contractor/Subcontractor or any person acting on behalf of the Contractor/Subcontractor, whichever is earlier. Media (hard drives, optical disks, CDs, back-up tapes, etc.) used by the Contractors/Subcontractors that contain VA information must be returned to VA for sanitization or destruction or the Contractor/Subcontractor must self-certify that the media has been disposed of per 6500.1 requirements. This must be completed within 30 days of termination of the contract.

h. Bio-Medical devices and other equipment or systems containing media (hard drives, optical disks, etc.) with VA sensitive information must not be returned to the vendor at the end of lease, for trade-in, or other purposes. The options are:

- 1) Vendor must accept the system without the drive;
- 2) VA's initial medical device purchase includes a spare drive which must be installed in place of the original drive at time of turn-in; or
- 3) VA must reimburse the company for media at a reasonable open market replacement cost at time of purchase.
- 4) Due to the highly specialized and sometimes proprietary hardware and software associated with medical equipment/systems, if it is not possible for VA to retain the hard drive, then;
 - a) The equipment vendor must have an existing BAA if the device being traded in has sensitive information stored on it and hard drive(s) from the system are being returned physically intact; and
 - b) Any fixed hard drive on the device must be non-destructively sanitized to the greatest extent possible without negatively impacting system operation. Selective clearing down to

patient data folder level is recommended using VA approved and validated overwriting technologies/methods/tools. Applicable media sanitization specifications need to be preapproved and described in the purchase order or contract.

c) A statement needs to be signed by the Director (System Owner) that states that the drive could not be removed and that (a) and (b) controls above are in place and completed. The ISO needs to maintain the documentation.

B.6 SECURITY INCIDENT INVESTIGATION

a. The term “security incident” means an event that has, or could have, resulted in unauthorized access to, loss or damage to VA assets, or sensitive information, or an action that breaches VA security procedures. The Contractor/Subcontractor shall immediately notify the COR and simultaneously, the designated ISO and Privacy Officer for the delivery order of any known or suspected security/privacy incidents, or any unauthorized disclosure of sensitive information, including that contained in system(s) to which the Contractor/Subcontractor has access.

b. To the extent known by the Contractor/Subcontractor, the Contractor/Subcontractor’s notice to VA shall identify the information involved, the circumstances surrounding the incident (including to whom, how, when, and where the VA information or assets were placed at risk or compromised), and any other information that the Contractor/Subcontractor considers relevant.

c. With respect to unsecured protected health information, the business associate is deemed to have discovered a data breach when the business associate knew or should have known of a breach of such information. Upon discovery, the business associate must notify the covered entity of the breach. Notifications need to be made in accordance with the executed business associate agreement.

d. In instances of theft or break-in or other criminal activity, the Contractor/Subcontractor must concurrently report the incident to the appropriate law enforcement entity (or entities) of jurisdiction, including the VA OIG and Security and Law Enforcement. The Contractor, its employees, and its Subcontractors and their employees shall cooperate with VA and any law enforcement authority responsible for the investigation and prosecution of any possible criminal law violation(s) associated with any incident. The Contractor/Subcontractor shall cooperate with VA in any civil litigation to recover VA information, obtain monetary or other compensation from a third party for damages arising from any incident, or obtain injunctive relief against any third party arising from, or related to, the incident.

B.7 LIQUIDATED DAMAGES FOR DATA BREACH

a. Consistent with the requirements of 38 U.S.C. §5725, a delivery order/contract may require access to sensitive personal information. If so, the Contractor is liable to VA for liquidated damages in the event of a data breach or privacy incident involving any SPI the Contractor/Subcontractor processes or maintains under this contract. However, it is the policy of VA to forgo collection of liquidated damages in the event the Contractor provides payment of actual damages in an amount determined to be adequate by the agency.

b. The Contractor/Subcontractor shall provide notice to VA of a “security incident” as set forth in the Security Incident Investigation section above. Upon such notification, VA must secure from a non-Department entity or the VA Office of Inspector General an independent risk

analysis of the data breach to determine the level of risk associated with the data breach for the potential misuse of any sensitive personal information involved in the data breach. The term 'data breach' means the loss, theft, or other unauthorized access, or any access other than that incidental to the scope of employment, to data containing sensitive personal information, in electronic or printed form, that results in the potential compromise of the confidentiality or integrity of the data. Contractor shall fully cooperate with the entity performing the risk analysis. Failure to cooperate may be deemed a material breach and grounds for delivery order/contract termination.

c. Each risk analysis shall address all relevant information concerning the data breach, including the following:

- 1) Nature of the event (loss, theft, unauthorized access);
- 2) Description of the event, including:
 - a) date of occurrence;
 - b) data elements involved, including any PII, such as full name, social security number, date of birth, home address, account number, disability code;
- 3) Number of individuals affected or potentially affected;
- 4) Names of individuals or groups affected or potentially affected;
- 5) Ease of logical data access to the lost, stolen or improperly accessed data in light of the degree of protection for the data, e.g., unencrypted, plain text;
- 6) Amount of time the data has been out of VA control;
- 7) The likelihood that the sensitive personal information will or has been compromised (made accessible to and usable by unauthorized persons);
- 8) Known misuses of data containing sensitive personal information, if any;
- 9) Assessment of the potential harm to the affected individuals;
- 10) Data breach analysis as outlined in 6500.2 Handbook, Management of Breaches Involving Sensitive Personal Information, as appropriate; and
- 11) Whether credit protection services may assist record subjects in avoiding or mitigating the results of identity theft based on the sensitive personal information that may have been compromised.

d. Based on the determinations of the independent risk analysis, the Contractor shall be responsible for paying to VA liquidated damages in the amount of \$37.50 per affected individual to cover the cost of providing credit protection services to affected individuals consisting of the following:

- 1) Notification;
- 2) One year of credit monitoring services consisting of automatic daily monitoring of at least 3 relevant credit bureau reports;
- 3) Data breach analysis;
- 4) Fraud resolution services, including writing dispute letters, initiating fraud alerts and credit freezes, to assist affected individuals to bring matters to resolution;
- 5) One year of identity theft insurance with \$20,000.00 coverage at \$0 deductible; and
- 6) Necessary legal expenses the subjects may incur to repair falsified or damaged credit records, histories, or financial affairs.

B.8 SECURITY CONTROLS COMPLIANCE TESTING

On a periodic basis, VA, including the Office of Inspector General, reserves the right to evaluate any or all of the security controls and privacy practices implemented by the Contractor under the clauses contained within the contract. With 10 working-day's notice, at the request of the Government, the Contractor must fully cooperate and assist in a Government-sponsored security controls assessment at each location wherein VA information is processed or stored, or information systems are developed, operated, maintained, or used on behalf of VA, including those initiated by the Office of Inspector General. The Government may conduct a security control assessment on shorter notice (to include unannounced assessments) as determined by VA in the event of a security incident or at any other time.

B.9 TRAINING

a. All Contractor employees and Subcontractor employees requiring access to VA information and VA information systems shall complete the following before being granted access to VA information and its systems:

- 1) Sign and acknowledge (either manually or electronically) understanding of and responsibilities for compliance with the VA Information Security Rules of Behavior, relating to access to VA information and information systems;
- 2) Successfully complete the VA Privacy and Information Security Awareness and Rules of Behavior course (TMS 2.0 # VA 10176) and complete this required privacy and information security training annually;
- 3) Successfully complete any additional cyber security or privacy training, as required for VA personnel with equivalent information system access [to be defined by the VA program official and provided to the CO for inclusion in the solicitation document – e.g., any role-based information security training required in accordance with NIST Special Publication 800-16, Information Technology Security Training Requirements.]

b. The Contractor shall provide to the CO and/or the COR a copy of the training certificates and certification of signing the Contractor Rules of Behavior for each applicable employee within two days of the initiation of the delivery order/contract and annually thereafter, as required.

c. Failure to complete the mandatory annual training and electronically sign the Rules of Behavior annually, within the timeframe required, is grounds for suspension or termination of all physical or electronic access privileges and removal from work on the delivery order/contract until such time as the training and documents are complete.

SECTION C - CONTRACT CLAUSES

C.1 NASA SEWP V RFQ INTRODUCTORY LANGUAGE

All clauses and provisions from the Federal Acquisition Regulation (FAR), NASA FAR Supplement, and the Goddard Space Flight Center Regulation from the applicable NASA Solutions for Enterprise Wide Procurement (SEWP) V Government-Wide Acquisition Contract (GWAC), and the specific NASA SEWP V contract referenced on the SF1449 in Block 2, are hereby incorporated by reference.

The full text of any FAR and NASA SEWP V clauses which are incorporated by reference may be obtained at the following URLs:

FAR: <http://www.acquisition.gov/far/index.html>

NASA SEWP V: <http://www.sewp.nasa.gov>

(End of Clause)

C.2 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<http://www.acquisition.gov/far/index.html>

<http://www.va.gov/oal/library/vaar/vaar852.asp>

(End of Clause)

FAR NUMBER	TITLE	DATE
52.204-4	PRINTED OR COPIED DOUBLE-SIDED ON POSTCONSUMER FIBER CONTENT PAPER	MAY 2011
52.204-9	PIV OF CONTRACTOR PERSONNEL	JAN 2011
52.204-14	SERVICE CONTRACT REPORTING REQUIREMENTS	OCT 2016
52.209-9	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS	OCT 2018
52.227-1	AUTHORIZATION AND CONSENT	DEC 2007
52.227-2	NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT	DEC 2007
52.242-13	BANKRUPTCY	JUL 1995
52.237-2	PROTECTION OF GOVERNMENT BUILDINGS EQUIPMENT, AND VEGETATION	APR 1984
52.245-1	GOVERNMENT PROPERTY	JAN 2017

C.3 52.204-21 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS (JUN 2016)

(a) *Definitions.* As used in this clause—

Covered contractor information system means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

Federal contract information means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or

service to the Government, but not including information provided by the Government to the public (such as on public Web sites) or simple transactional information, such as necessary to process payments.

Information means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

Information system means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502).

Safeguarding means measures or controls that are prescribed to protect information systems.

(b) *Safeguarding requirements and procedures.* (1) The Contractor shall apply the following basic safeguarding requirements and procedures to protect covered contractor information systems. Requirements and procedures for basic safeguarding of covered contractor information systems shall include, at a minimum, the following security controls:

(i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).

(ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.

(iii) Verify and control/limit connections to and use of external information systems.

(iv) Control information posted or processed on publicly accessible information systems.

(v) Identify information system users, processes acting on behalf of users, or devices.

(vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.

(vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.

(viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.

(ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.

(x) Monitor, control, and protect organizational communications (i.e., information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.

(xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.

(xii) Identify, report, and correct information and information system flaws in a timely manner.

(xiii) Provide protection from malicious code at appropriate locations within organizational information systems.

(xiv) Update malicious code protection mechanisms when new releases are available.

(xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

(2) *Other requirements.* This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal agencies and departments relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

(c) *Subcontracts.* The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial items, other than commercially available off-the-shelf items), in which the

subcontractor may have Federal contract information residing in or transiting through its information system.

(End of Clause)

C.4 52.217-7 OPTION FOR INCREASED QUANTITY—SEPARATELY PRICED LINE ITEM (MAR 1989)

The Government may require the delivery of the numbered line item, identified in the Schedule as the Line Items 0028-0051, and 0064-0140 (inclusive of all sub-line item numbers), in the quantity and at the price stated in the Schedule. The Contracting Officer may exercise the option by written notice to the Contractor within five business days. Delivery of added items shall continue at the same rate that like items are called for under the contract, unless the parties otherwise agree.

(End of Clause)

C.5 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor any time prior to the expiration of the contract; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 5 years.

C.6 52.227-19 COMMERCIAL COMPUTER SOFTWARE LICENSE (DEC 2007)

(a) Notwithstanding any contrary provisions contained in the Contractor's standard commercial license or lease agreement, the Contractor agrees that the Government will have the rights that are set forth in paragraph (b) of this clause to use, duplicate or disclose any commercial computer software delivered under this contract. The terms and provisions of this contract shall comply with Federal laws and the Federal Acquisition Regulation.

(b) (1) The commercial computer software delivered under this contract may not be used, reproduced, or disclosed by the Government except as provided in paragraph (b)(2) of this clause or as expressly stated otherwise in this contract.

(2) The commercial computer software may be-

(i) Used or copied for use with the computer(s) for which it was acquired, including use at any Government installation to which the computer(s) may be transferred;

(ii) Used or copied for use with a backup computer if any computer for which it was acquired is inoperative;

(iii) Reproduced for safekeeping (archives) or backup purposes;

(iv) Modified, adapted, or combined with other computer software, provided that the modified, adapted, or combined portions of the derivative software incorporating any of the

delivered, commercial computer software shall be subject to same restrictions set forth in this contract;

(v) Disclosed to and reproduced for use by support service Contractors or their subcontractors, subject to the same restrictions set forth in this contract; and

(vi) Used or copied for use with a replacement computer.

(3) If the commercial computer software is otherwise available without disclosure restrictions, the Contractor licenses it to the Government without disclosure restrictions.

(c) The Contractor shall affix a notice substantially as follows to any commercial computer software delivered under this contract:

*Notice-*Notwithstanding any other lease or license agreement that may pertain to, or accompany the delivery of, this computer software, the rights of the Government regarding its use, reproduction and disclosure are as set forth in Government Contract No.NNG15SD22B 36C10B23F0015.

(End of clause)

C.7 852.212-70 PROVISIONS AND CLAUSES APPLICABLE TO VA ACQUISITION OF COMMERCIAL ITEMS (APR 2020)

(a) The Contractor agrees to comply with any provision or clause that is incorporated herein by reference to implement agency policy applicable to acquisition of commercial items or components. The following provisions and clauses that have been checked by the Contracting Officer are incorporated by reference.

- ☒ [852.203-70](#), Commercial Advertising.
- ☐ [852.209-70](#), Organizational Conflicts of Interest.
- ☐ [852.211-70](#), Equipment Operation and Maintenance Manuals.
- ☐ [852.214-71](#), Restrictions on Alternate Item(s).
- ☐ [852.214-72](#), Alternate Item(s). [Note: this is a fillable clause.]
- ☐ [852.214-73](#), Alternate Packaging and Packing.
- ☐ [852.214-74](#), Marking of Bid Samples.
- ☐ [852.215-70](#), Service-Disabled Veteran-Owned and Veteran-Owned Small Business Evaluation Factors.
- ☐ [852.215-71](#), Evaluation Factor Commitments.
- ☐ [852.216-71](#), Economic Price Adjustment of Contract Price(s) Based on a Price Index.
- ☐ [852.216-72](#), Proportional Economic Price Adjustment of Contract Price(s) Based on a Price Index.
- ☐ [852.216-73](#), Economic Price Adjustment—State Nursing Home Care for Veterans.
- ☐ [852.216-74](#), Economic Price Adjustment—Medicaid Labor Rates.
- ☐ [852.216-75](#), Economic Price Adjustment—Fuel Surcharge.
- ☐ [852.219-9](#), VA Small Business Subcontracting Plan Minimum Requirements.
- ☒ [852.219-10](#), VA Notice of Total Service-Disabled Veteran-Owned Small Business Set-Aside.
- ☐ [852.219-11](#), VA Notice of Total Veteran-Owned Small Business Set-Aside.
- ☐ [852.222-70](#), Contract Work Hours and Safety Standards—Nursing Home Care for Veterans.
- ☐ [852.228-70](#), Bond Premium Adjustment.

- ___ [852.228-71](#), Indemnification and Insurance.
- ___ [852.228-72](#), Assisting Service-Disabled Veteran-Owned and Veteran-Owned Small Businesses in Obtaining Bonds.
- _X_ [852.232-72](#), Electronic Submission of Payment Requests.
- ___ [852.233-70](#), Protest Content/Alternative Dispute Resolution.
- ___ [852.233-71](#), Alternate Protest Procedure.
- ___ [852.237-70](#), Indemnification and Medical Liability Insurance.
- ___ [852.246-71](#), Rejected Goods.
- ___ [852.246-72](#), Frozen Processed Foods.
- ___ [852.246-73](#), Noncompliance with Packaging, Packing, and/or Marking Requirements.
- _X_ [852.270-1](#), Representatives of Contracting Officers.
- ___ [852.271-72](#), Time Spent by Counselee in Counseling Process.
- ___ [852.271-73](#), Use and Publication of Counseling Results.
- ___ [852.271-74](#), Inspection.
- ___ [852.271-75](#), Extension of Contract Period.
- ___ [852.273-70](#), Late Offers.
- ___ [852.273-71](#), Alternative Negotiation Techniques.
- ___ [852.273-72](#), Alternative Evaluation.
- ___ [852.273-73](#), Evaluation—Health-Care Resources.
- ___ [852.273-74](#), Award without Exchanges.
- (b) All requests for quotations, solicitations, and contracts for commercial item services to be provided to beneficiaries must include the following clause:
- ___ [852.237-74](#), Nondiscrimination in Service Delivery.

(End of clause)

C.8 852.219-74 LIMITATIONS ON SUBCONTRACTING MONITORING AND COMPLIANCE JUL-2018)

- (a) This solicitation includes VAAR 852.219-10 VA Notice of Total Service-Disabled Veteran-Owned Small Business Set-Aside (Nov 2020).
- (b) Accordingly, any contract resulting from this solicitation is subject to the limitation on subcontracting requirements in 13 CFR 125.6. The Contractor is advised that in performing contract administration functions, the Contracting Officer may use the services of a support contractor(s) retained by VA to assist in assessing the Contractor's compliance with the limitations on subcontracting or percentage of work performance requirements specified in the clause. To that end, the support contractor(s) may require access to Contractor's offices where the Contractor's business records or other proprietary data are retained and to review such business records regarding the Contractor's compliance with this requirement.
- (c) All support contractors conducting this review on behalf of VA will be required to sign an "Information Protection and Non-Disclosure and Disclosure of Conflicts of Interest Agreement" to ensure the Contractor's business records or other proprietary data reviewed or obtained in the course of assisting the Contracting Officer in assessing the Contractor for compliance are protected to ensure information or data is not improperly disclosed or other impropriety occurs.
- (d) Furthermore, if VA determines any services the support contractor(s) will perform in assessing compliance are advisory and assistance services as defined in [FAR 2.101](#), Definitions, the support contractor(s) must also enter into an agreement with the Contractor to protect proprietary information as required by [FAR 9.505-4](#), Obtaining access to proprietary information, paragraph (b). The Contractor is required to cooperate fully and make available any records as may be required to enable the Contracting Officer to assess the Contractor's

compliance with the limitations on subcontracting or percentage of work performance requirement.

(End of clause)

**C.9 852.219-77 VA NOTICE OF LIMITATIONS ON SUBCONTRACTING—
CERTIFICATE OF COMPLIANCE FOR SERVICES AND CONSTRUCTION (SEP
2021) DEVIATION**

(a) Pursuant to 38 U.S.C. 8127(k)(2), the offeror certifies that—

(1) If awarded a contract (see [FAR 2.101](#) definition), it will comply with the limitations on subcontracting requirement as provided in the solicitation and the resultant contract, as follows:

(i) ☒ Services. In the case of a contract for services (except construction), the contractor will not pay more than 50% of the amount paid by the government to it to firms that are not VIP-listed SDVOSBs as set forth in [852.219-10](#) or VOSBs as set forth in [852.219-11](#). Any work that a similarly situated VIP-listed subcontractor further subcontracts will count towards the 50% subcontract amount that cannot be exceeded. Other direct costs may be excluded to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service as set forth in 13 CFR 125.6.

(ii) ☐ General construction. In the case of a contract for general construction, the contractor will not pay more than 85% of the amount paid by the government to it to firms that are not VIP-listed SDVOSBs as set forth in [852.219-10](#) or VOSBs as set forth in [852.219-11](#). Any work that a similarly situated VIP-listed subcontractor further subcontracts will count towards the 85% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(iii) ☐ Special trade construction contractors. In the case of a contract for special trade contractors, the contractor will not pay more than 75% of the amount paid by the government to it to firms that are not VIP-listed SDVOSBs as set forth in [852.219-10](#) or VOSBs as set forth in [852.219-11](#). Any work that a similarly situated subcontractor further subcontracts will count towards the 75% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(2) The offeror acknowledges that this certification concerns a matter within the jurisdiction of an Agency of the United States. The offeror further acknowledges that this certification is subject to Title 18, United States Code, Section 1001, and, as such, a false, fictitious, or fraudulent certification may render the offeror subject to criminal, civil, or administrative penalties, including prosecution.

(3) If VA determines that an SDVOSB/VOSB awarded a contract pursuant to 38 U.S.C. 8127 did not act in good faith, such SDVOSB/VOSB shall be subject to any or all of the following:

(i) Referral to the VA Suspension and Debarment Committee;

(ii) A fine under section 16(g)(1) of the Small Business Act (15 U.S.C. 645(g)(1)); and

(iii) Prosecution for violating section 1001 of title 18.

(b) The offeror represents and understands that by submission of its offer and award of a contract it may be required to provide copies of documents or records to VA that VA may review to determine whether the offeror complied with the limitations on subcontracting requirement specified in the contract. The Contracting Officer may, at their discretion, require the Contractor to demonstrate its compliance with the limitations on subcontracting at any time during performance and upon completion of a contract if the information regarding such compliance is not already available to the Contracting Officer. Evidence of compliance includes, but is not limited to, invoices, copies of subcontracts, or a list of the value of tasks performed.

(c) The offeror further agrees to cooperate fully and make available any documents or records as may be required to enable VA to determine compliance with the limitations on subcontracting requirement. The offeror understands that failure to provide documents as requested by VA may result in remedial action as the Government deems appropriate.

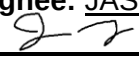
(d) Offeror completed certification/fill-in required. The formal certification must be completed, signed, and returned with the offeror's bid, quotation, or proposal. The Government will not consider offers for award from offerors that do not provide the certification, and all such responses will be deemed ineligible for evaluation and award.

Certification:

I hereby certify that if awarded the contract, [FOUR POINTS TECHNOLOGY

] will comply with the limitations on subcontracting specified in this clause and in the resultant contract. I further certify that I am authorized to execute this certification on behalf of []. Printed Name of Signee: FOUR POINTS TECHNOLOGY

Printed Title of Signee: JASON GOLDBERG VP, SALES

Signature:  Date: 9/27/20

Company Name and Address: FOUR POINTS TECHNOLOGY

14900 CONFERENCE CENTER DRIVE SUITE 100 CHANTILLY, VA 20151

(End of Clause)

SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS

ATTACHMENT A - OPTIONAL QUANTITIES PRICING SPREADSHEET